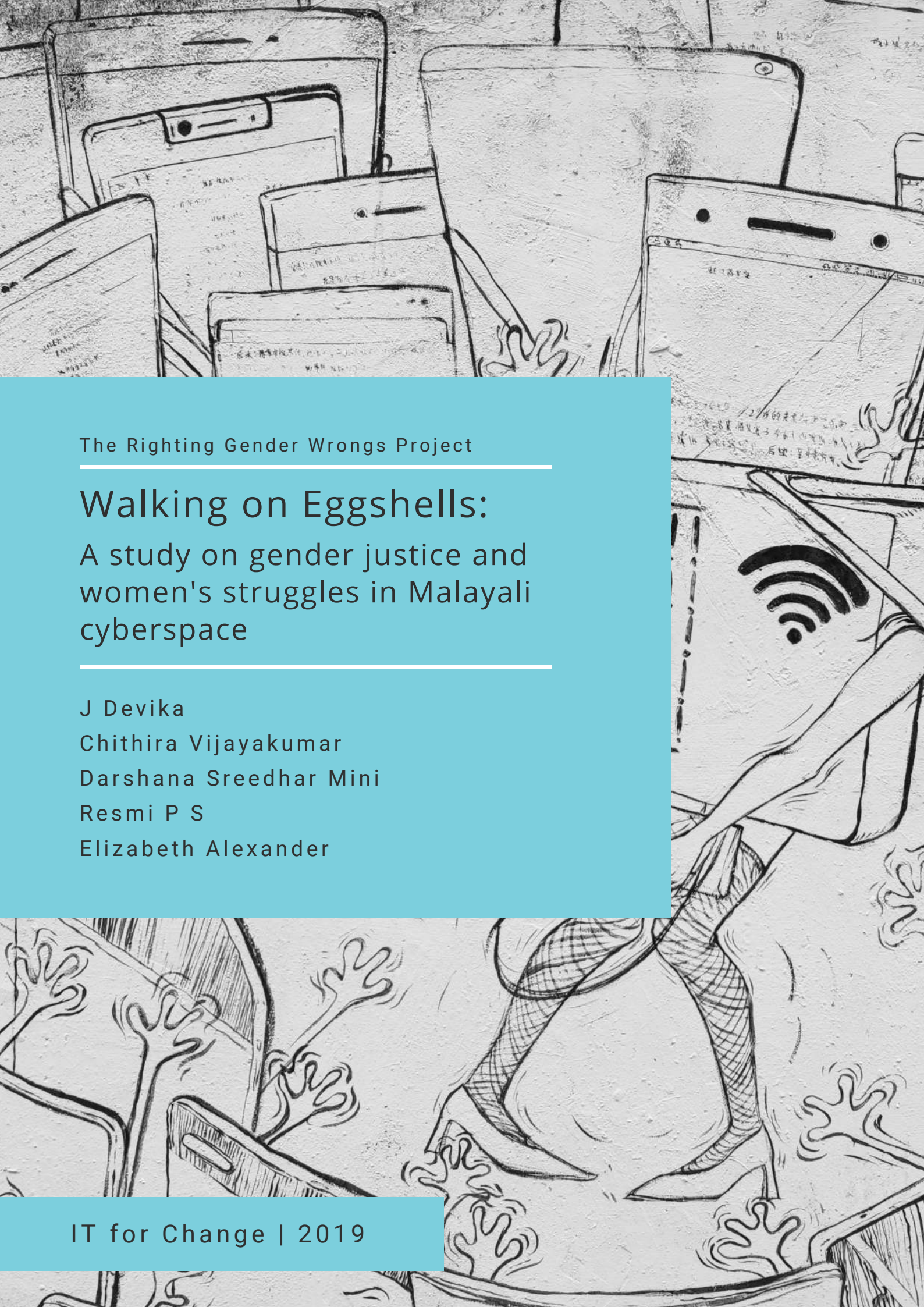




The Righting Gender Wrongs Project

Walking on Eggshells:

A study on gender justice and
women's struggles in Malayali
cyberspace

J Devika

Chithira Vijayakumar

Darshana Sreedhar Mini

Resmi P S

Elizabeth Alexander

IT for Change | 2019

Authors

J Devika, Chithira Vijayakumar, Darshana Sreedhar Mini
Resmi P S, Elizabeth Alexander

Research coordination team

Principal Investigator: Anita Gurumurthy

Co-investigators: Amrita Vasudevan, Nandini Chami

Research Assistance: Sarada Mahesh

Design: Meenakshi Yadav

© IT for Change 2019



Licensed under a Creative Commons License Attribution-ShareAlike 4.0 International
(CC BY-SA 4.0)

Walking on Eggshells

**A study on gender justice and women's
struggles in Malayali cyberspace**

Page left intentionally blank

Table of Contents

Acknowledgements	2
Introduction.....	3
The Nature of Malayali Gendered Cyberspaces	5
Exposing the Private? Patriarchal Anxieties.....	5
‘Cinderella approach’ and other Strategies of Resistance by Women	10
Marginality and the Experience of Cyber Harassment among Women	14
Male and Female Students Negotiating Cyberspaces	16
Dealing with Cyber Violence.....	20
Young women and men: Tackling Nuisance, Harassment, and Outright Violation.....	20
Parents and Guardians: Fear of ‘Leak’	23
Police Responses to GBCV	26
Challenges in Law-Enforcement	30
Training	30
Facilitating Ease of Approach.....	31
Overcoming the Limitations of the Law	32
Securing Evidence	34
Better Reporting	36
Conclusions	36

Acknowledgements

This research is an effort to start an informed conversation about the gendered nature of digital publics in Malayalam. Detailed research on the spaces, identities, and agency that they enable and the play of forces that shape them is yet to come. We are grateful to colleagues at IT for Change – Anita, Nandini, Sarada and others – and to our colleagues at CDS, for enabling it.

This research, however, became practically possible only because teachers and students in the colleges were enthusiastic about it, and because police officers, feminist lawyers and activists, transgender activists, cyber violence survivors, activists with considerable experience in digital activism, and a very large number of students, all concerned about the issue in different ways, were willing to spend valuable time giving us interviews. I thank them all for the entire team, and we do hope that this sets off widespread discussion about gendered cyberspaces and the challenges women face in securing equal citizenship there.

J Devika

Centre for Development Studies.

Introduction

Women's engagement with online spaces has become news in Kerala, yet the seriousness of the violations of women's rights online has not sunk in as far as the authorities are concerned. There are two faces to this unhappy situation: first, we now hear of an increasing number of instances in which women have been misled and violated online with serious offline consequences to their lives and reputations, and secondly, we hear of women being punished for online engagement, especially when they try to critically engage with discourses that deny women full citizenship. The first sort of violence came into view with discussions around the case of a young woman¹ whose husband abandoned her because nude images of her circulated through WhatsApp two years back, and who has been recently vindicated because the analysis of those at CDAC revealed that they were not of her; another instance of shocking violence was in Kannur, Kerala,² in which a young schoolgirl who had faced sexual violence from her father was lured by predators pretending to be friends using fake Facebook profiles and gang-raped. Then she was made to submit to further sexual violation with the threat that images of the rape would be circulated on Facebook. The second has surfaced with the unjust incarceration of the feminist body artist Rehana Fathima who attempted to perform the Sabarimala pilgrimage in the wake of the Supreme Court judgment lifting the ban on the entry of women of menstruating ages there. She was arrested on a complaint by a Hindutva supporter that her FB posts on the issue hurt his religious sentiments; subsequently, an image she posted of herself in the traditional pilgrim costume was widely condemned as 'obscene'. She was granted bail and the bail conditions included an undertaking not to post anything that may hurt religious sentiments. Meanwhile, the Kerala Police has been sharing advice of safe online behaviour³ which focuses on: (a) the reduction of internet use and access to it among students, (b) greater surveillance by parents and others of internet use by students, (c) special restrictions for girls, such as avoidance of selfies with boys and uploading their images on FB and WhatsApp, as well as the promotion of greater awareness of sexual touch among them, and (d) the strengthening of family communication.

In sum, the unhappy situation is this: even as women face violence online and their right as citizens to be part of digital publics is attacked by patriarchal forces and curtailed by the judiciary, the police issues ever-more restrictive 'codes of conduct' which target young women and girls in particular for greater surveillance and control. In a context in which digital publics become all the more crucial for democracy and the interpenetration of online and offline spaces is all the more intense, the struggle for women's rights in the online world as full citizens becomes vital.

This report on women's access and presence in cyberspaces in Kerala is based on mixed-method research in five prominent colleges in two major cities and a town. It comprised of:

- A self-administered survey covering over three hundred female students in six prominent colleges in two cities.ⁱ The names of colleges, respondents, and interviewees are not mentioned to assure the anonymity we promised them.
- Six in-depth semi-structured interviews with police officials of different ranks, from that of the AGDP to ASI with considerable experience in cyber cells investigating cyber-crimes and setting up institutional frameworks, five lawyers supporting survivors of gender-based cyber violence against women, and four survivors.
- Five conversations with women activists online including a very useful conversation with InjiPennu, a long-standing cyber feminist activist from the Malayalam cyber world.
- Long conversations with five transpeople who are active online.
- Five focus group discussions with groups of male and female students at the post-graduate level and in the final year of graduation (who were not part of the survey) in the two cities.ⁱⁱ

ⁱ The six colleges in which we conducted the survey are located in two major urban areas in Kerala, Thiruvananthapuram and Kochi. All are well-established, prestigious public-funded (some are under private management, but receive public funding) institutions where students from rural areas also study in large numbers. In general, with the exception perhaps of one, all colleges cater to Kerala's middle class – higher and lower. The survey respondents were between 17 -24 of age, with the larger numbers falling in the 19-21 group (79 per cent) (Table Q1.1). They are largely Malayalam-speakers. The large numbers reported as using mainly English online (56 per cent nearly) might be most probably referring to the common practice of typing Malayalam in English. (Table Q1.2).

ⁱⁱ The survey was not meant to be representative of the population of students using the internet; it was used as a guide to qualitative research, and to obtain a 'feel' of how students perceive and deal with the cyber world.

- Experience-sharing sessions were woven into the administration of the survey and the short accounts shared by individual students (around a hundred) also form part of the qualitative material.
- Besides these, we also collected media reportage of well-known cases of GBCVAW in Kerala, examined the awareness-creation material produced by the Kerala Police online, and also popular books that introduce online safety to general readers.ⁱⁱⁱ

Through this research we hope to offer some insight into the nature of cyberspace which Malayali women, especially young women, inhabit, their experience of negotiating it, the kinds of violence they encounter online and the impact of these, the ways in which they deal with violence and assert their presence. We also reflect on the challenges faced by the police and the supporters of survivors in their fight for justice in the legal system, the patriarchal ideologies that infect the narratives of law enforcement authorities, the limitations of the law, the possibilities and pitfalls of technology, and also on overcoming pitfalls and remedying gaps.

Police officers and lawyers supporting survivors tended to recall 2011-2012 as year in which complaints about GBCV began to see an increase, injustices suffered by women online have a longer history, as pointed out to us by the prominent cyber feminist InjiPennu. Yahoo India's Malayalam-language web portal plagiarised the work of a housewife from her food blog Kariveppila.⁴ Yahoo ended up apologizing in 2007⁵ but did not issue a personal apology to the aggrieved woman and remove the content. InjiPennu who supported her in her struggle along with a large number of women bloggers – who wrote protest letters to Yahoo and also organized an offline anti-plagiarism protest – remembers that these victories were superficial. The housewife whose material was stolen and InjiPennu faced intense cyber-attacks, and the latter was physically threatened.⁶ A fake website was created in her name. InjiPennu remembers that many women food bloggers including the person whose recipes were stolen by Yahoo's content provider, left cyber space for good. InjiPennu recalled how vital it was to demystify technology for women to stay confident in cyber space – as she pointed out astutely, what was clear is that the male attackers more often than not assume that women in cyber space know nothing of or cannot control technology. She remarks, "That made me realise how dumb they were." However, the local police in Kerala were not involved in this struggle. In other words, while some redress was obtained in the plagiarism issue, the violence the women who complained about it faced in cyber space was hardly reported. While victims based in the USA could complain, victims based in Kerala simply faded into oblivion.

Later, in 2015, another group of Malayali women active in the social media – mostly journalists, researchers, and writers based in different parts of the world – came together for a campaign against Facebook's Real Name policy,^{iv} called ForabetterFB. This was after a woman writer prominent in FB, Preetha G, was viciously attacked⁷ by a cyber mob in Malayalam for having criticized the misogynistic statements made by a major CPM leader. In just five weeks, they created three hate pages. FB did not act even after many of Preetha's supporters reported the hate pages claiming that it did not violate its community standards, and the threats to her and her supporters continue to be issued from these. Later, these criminals mass-reported them all using FB's Real Name policy and their profiles were blocked by FB. Complaints made to the cyber police in Kerala were fruitless as the police cited jurisdictional issues, as a very large number of attackers were based abroad. The campaign however grew into a global one,⁸ finding support from groups and prominent individuals in the field of digital rights (SFLC 2016). FB seemed to be responding with changes to the Real Name policy, but activists were dissatisfied by the progress as well as the implementation of even the minimal change promised. Meanwhile, prominent Malayali women involved in the campaign in Kerala faced atrocious trolling by the supporters of the CPM leader who Preetha G had criticised even though other leaders from the same party came out in their support.

From the above account, it appears that women's collective interventions for equal access to and safety in cyberspaces in Malayalam had a 'head-start', considering the fact that 2011-12 probably marks the year from which a larger number of women began to use the internet, probably through the mobile phone. Yet it appears that this has not resulted in better access or safety; nor has it led to non-protectionist positions on women's access to the internet among law enforcers.

Kerala is a society with high internet and mobile phone penetration. A recent report by CyberMedia Research,⁹ a market intelligence firm, claimed that Kerala had the highest smartphone penetration intensity in India, with 65 per cent while the

ⁱⁱⁱ These include a recent book by an IPS officer, Sanjay Kumar Gurudin, titled *Ningalute Kuttikal Surakshitaraano?* [Are your children safe?] (Kozhikode: Olive Publications, 2018) and Pattathil Dhanya Menon, *Cybercrime*, Thrissur: Green Books, 2017.

^{iv} This requires users to go by their 'actual' identities, the name they use in real life. In 2018, FB modified the policy to allow people who were asked to verify their names to cite special circumstances to retain it. See, <https://www.cbc.ca/news/technology/facebook-real-names-1.3367403>, accessed, 17 January 2019. Recently, the FB real names policy was challenged in Germany. See <https://www.theverge.com/2018/2/12/17005746/facebook-real-name-policy-illegal-german-court-rules>, accessed 17 January 2019.

all-India figure is 47 percent; research indicates that it was already high by 2011 (Paul and Murthy, nd: 10). It also has the highest internet penetration in the country, and telecommunication companies now consider it a major market¹⁰ with data revenue and consumption allegedly growing at 75 and 80 per cent respectively. This upswing is clearly connected to the rise of a new high-consuming middle class in the 1990s which now sets the standards of consumption for all others (George and Tharakan 2005).

Not surprisingly, then, in our sample, nearly 89 per cent reported that they owned a mobile phone and another 10 per cent said that they used a borrowed one (Appendix-I, Table Q.2.1). This was more or less evenly true across different social groups (Appendix-II, CT 2.1*1.6). These are largely phones of the Rs 5000 -15000 price range (78 per cent). Nearly 50 per cent of the surveyed students said that they access the internet through the mobile phone only (Appendix-I, Table Q2.8). Clearly, most of our respondents too belong to this middle-class but not necessarily urban, liberal, or cosmopolitan in its orientation. Of the total, only about 6 per cent had bought their mobile phones on an instalment basis, and from our experience-sharing sessions and FGDs, it emerged that most of the phones were gifts from parents when they passed tenth or twelfth standard exams.

In the following chapter, we outline the nature of cyber space as inhabited by women and men which emerged from our research. In the subsequent chapter, we examine the understanding of cyber space and the ways in which people of different genders, and people from different social backgrounds, of privilege and its absence, negotiate it; in the final section, we reflect on the responses of women and survivors, their various 'guardians' in patriarchal society, including family, colleagues, the police and courts. The third chapter examines in detail the challenges to law-enforcers, drawing on our interviews with police officers, lawyers supporting survivors, and survivors. The conclusion draws together the major threads that emerge in the earlier sections.

The Nature of Malayali Gendered Cyberspaces

Exposing the Private? Patriarchal Anxieties

In order to make sense of the gendered nature of Malayali cyberspaces, it may be necessary to consider briefly the history of gendered individuation in Kerala, especially of young women. Despite far-reaching social transformation in the 20th century, Malayali society remains highly patriarchal. Nevertheless, women have been granted certain limited forms of agency within the patriarchal frameworks of caste-community formations, which allow them access to education and to a certain extent, paid work. However women in Kerala across caste and class are still treated as counters to enhance family upward mobility through hypergamous marriage (Arun 2018). Thus young women in Kerala are often more college-educated than their male peers, though their employment prospects remain abysmally low (ibid.). However, this has contradictory consequences as well: staying for more years in formal education, young women are likely to be strongly individuated even though this is subjected heavily to domestic ideologies which confine the energies generated by the individuated female self to the sphere of the domestic. This may lead to psychological stress with the greater, more intense, emotional labour needed. That is, the labour expended by the woman to conform socially and avoid overstepping boundaries drawn by patriarchal authorities even as she struggles to maintain her individuality within them (Chua 2014). Add to these other features of present day Kerala, namely, the ubiquitous presence of very high dowry rates in marriage cutting across communities, the post-demographic transition scenario in which most families invest heavily in fewer children, the migration-dependence of the economy, the rising costs of higher and technical education, and rising inequalities in economic and social life, and it becomes evident that daughters suffer from 'structural worthlessness'. That is, the young woman has to be educated in order to be marriageable in a society in which education is increasingly expensive, and she has to be 'married up' at great expense in order to be of positive value to the family – and for this, she needs to be kept in strict check within conservative, heteronormative values and community boundaries (Devika and Mukherji 2007).

Thus it is hardly a coincidence that the National Family Health Survey reveals that young women in Kerala suffer heavily from the lack of mobility --according to the National Family Health Survey 2015-16, only 21 per cent of the women of the age group 25-29 in Kerala were employed in the past one year, compared to 75 per cent of the men in the same age group (NFHS 2015-16, Kerala, Table 87). Even when a large share of the surveyed women claimed to have some money that they decide how to use, only 12 per cent of them said that they could freely visit the market, health care facility, and places outside their village/community. Of women in the age group 20-24, only 8 per cent enjoy this freedom; this improves slightly in the 25-29 age group to 9.4; however, even in the 40-49 age group, only 18.4 percent may move freely to visit these places (NFHS 2015-16, Kerala, Table 91).

One of the consequences of the above shape of patriarchy is that as far as women are concerned, both the public and the domestic are heavily surveilled, disciplinary spaces. That is, the Malayali domestic has been a space of alliances

historically subject to reorganization and surveillance by the state. In other words, this domestic is not the private. The private when expressed by women – for instance through autobiographies that do not merely narrate domestic and public lives but probe inner experience, like the famous *Ente Katha* (My Story) by the well-known anti-patriarchal writer Madhavikkutty – has always been suspect here (Devika 2007). The ‘woman’s private’ is imagined by patriarchal authorities as a potentially subversive space that exists separate from the domestic, opaque, and hard to police. It has been recognized as troublesome to patriarchy and therefore authorities justify outright violent intrusion in dealing with it. And as to be expected, this space is by implication subversively sexualized (ibid.).

In the context outlined above, the act of creating a social media profile by a woman is undoubtedly frequently perceived by others as an act of individual assertion to some degree or other, or it raises such a possibility in the future, no matter how closely it is watched or controlled by familial and other authorities. From our focus group discussions, it emerged that even when opening an account at the prompting of family and elders who wish to follow the woman through it, women are keenly aware of this possibility of self-assertion. This is the case even when they claim that they do not intend to use it. That the social media profile can be made by the woman and a space can be maintained around the profile – through a number of operations including adding friends, limiting passwords, blocking unwanted people, including family and other authorities – was found to be a key reason for the attraction of the social media by a very many young women we were able to speak with. This, they found, was not just important for securing presence under the present social circumstances, it was even inevitable. Their parents and other guardians did not often agree and according to the students, they were ever-anxious about their daughters’ online lives while not so worried about their sons’. Clearly, there is a gap between the perception of the importance of online lives to self-building between parents and guardians, and their daughters. The young women who spoke to us during the surveys in the colleges as well as those who participated in the FGDs felt that the anxiety of parents and other family members at them uploading profile pictures of themselves in Facebook was at least partially irrational, as also the condemnation by teachers and community-leaders of ‘selfie-addiction’ especially among young women.

The ingenious ways in which families seek to control or supervise their daughters’ online lives merits deeper research, judging from these accounts. This is apart from the distressingly-large number of young women who told us that they were ordered to exit Facebook after a single minor negative experience, and of the clear gender discrimination practiced by families in allowing online access (while boys were scolded for spending too much time online, girls were told to quit after minor negative experiences). In the experience-sharing during the survey some participants said that they answered the question whether they had experienced harassment online (of Table Q 4.1 in the Appendix-I) in the negative because their parents/male siblings had perceived some interactions as unwelcome and barred them from entering the social media.

But many guardians do allow young women there, under their strict supervision. In such instances, the space that the woman creates around her social media profile is watched, supervised, and even directly shaped by male relatives. One young woman for example, from a middle-class upper-caste family, said that her family encouraged girls to form ‘joint accounts’ with their male family members, usually brothers. The men would set up accounts and the password so that they can check and control activity on the girls’ profiles. Not all women students were averse to this. Highlighting the replication of offline controls in online spaces, she added, “This is just like a joint account in a bank, Madam. So that we don’t make bad mistakes.” Some take the even more restrictive rule of entering cyberspace through their male relatives’ accounts: “I have no experience with social media. I have two brothers, and they both use FB and Instagram. I haven’t created any accounts of my own. I look through their accounts, and I’m satisfied with that.”

In short, most guardians seem aware of the fact that the cyberworld was too closely involved with the offline world now, and so these women are allowed to shop, pay bills, study, and encouraged to learn more about transacting everyday business online. In other words, patriarchal guardians view cyberspaces as necessary but unfamiliar and fraught with danger and the prospect of no-return (a number of women students said that family members and teachers told them not to grab the *vaal* (tail) of the *puli* (leopard) or *kaduva* (tiger), just like alien spaces offline, and dissuade young women from venturing there on their own. Yet they also agree that young women “these days” need to be familiar with the internet (and this makes sense given the fact that now, married women in Kerala are often far better educated than their husbands and so are expected to know how to go online) and so seek to intensify surveillance on them. One of our survey respondents remarked during experience-sharing that her father thought that she needed to learn how to use the internet, but did not approve of her mother doing the same. “He knows I must have this skill to get a job etc. and this is the rule these days, but my mother isn’t going for a job so she doesn’t need it, he thinks.”

Social media, especially Facebook, WhatsApp, and Instagram, however, offer young women much more than this. They allow the woman to create a ‘new face and space’ for herself, and not surprisingly, it is these that apparently generate the greatest distrust and suspicion among patriarchal authorities – ranging from fears that these spaces may be badly secured by the woman or deliberately compromised by her. The single most frequent piece of advice our respondents

received was against uploading their images, especially selfies. The second most-frequent advice is not to be online at night. The fear about a woman out by herself alone at night is projected on to women's online presence at night, and women who reject this advice are taken to have invited violence on themselves. Indeed, the fear is of women stepping away *by choice* from the well-lit (or well-surveilled) domestic space at unholy hours. Women online at night are treated as moving away willingly from domestic protection, and so it becomes readily possible to attribute a subversive, sexualised motive to them. Self-expression that is not thoroughly filtered through the domestic thus may be treated as automatically sexual – the revealing of a private beyond the domestic. Of course, there are no objective standards by which one can measure the degree of domestic-filtering that an image may have been put through, and therefore interpretive freedom exercised by harassers online may treat any image of a woman as sexual.

This perhaps helps us understand why images of women that may well be read as neutral/asexual can be presented as 'private' – read sexual – and by implication, pornographic. An overwhelmingly large number of women respondents who shared stories about attacks on their images by both people known and unknown to them expressed surprise, insisting that except for a broad smile, an unusual gesture, or a new pose, there was nothing in them that troubled mainstream understandings of female decency. Some women told us that boyfriends now advise them on how to pose for pictures online, in a 'safe' way: "My boyfriend saw a pic of mine sitting with my thigh up on the other thigh. He told me I should not pose for pics like that. Put both feet on the floor." A well-known student activist who has a huge online following recalled how an image of her in a well-fitting shirt appeared on a semi-pornographic site marked as a porn image, with zero alterations. A particularly revealing instance shared with us was about a 'good girl':

I had a friend who was 'practicing to be a 'kulasthree' (laughs) She wore a set-saree, had flowers in her hair, and had none of these other rape threat issues or anything. But one day, some guy took photos of her just going about her day...washing her hands, spitting! (laughs) And then sent her a message saying 'You are the ideal Malayalee woman. I will always be behind you to capture your beauty.' Finished! She had been a confident person till then. She was traumatised. She couldn't even step out of the house without her parents. The threat is very real. Doesn't have to be nude pics! Imagine feeling like there's someone constantly behind you.

Therefore control by guardians focuses hugely on the image-content uploaded by their young female wards and on the times they spend online. Women are advised on how to use blocking and reporting tools to secure their space effectively at all times.

Yet whether restricting women this way necessarily contains this danger is rarely discussed even among police authorities – even though there is contrary evidence. A recent case in Kerala of cybercrime¹¹ involved a wedding-photo studio had been misusing the video images they had of brides to produce porn through morphing. The police officers we interviewed advised various degrees of self-discipline among women users to contain cyber harassment – but none of them mentioned this case. The problem of 'leak' is always projected as a 'woman's problem' and one that she should contain through self-restriction and self-censorship. But it is clear from the above incident that the leak cannot be prevented by restricting women to offline and domestic spaces – after all, wedding photo and video shoots happen in domestic spaces, under strict domestic supervision. There can no real guarantee that digital images will stay under control forever.^v

It appears from what students report in our survey data of graduate-level women students that the extreme caution displayed by many guardians may be rather unnecessary. It seems to indicate that women stay largely within family circles in the internet. The large majority of our survey respondents – 289 out of 305 – claimed that they use internet to connect with family and friends (among other 'safe' things); an almost equal number (262) says that they use it for their studies (among other 'safe' things). Nearly 38 per cent say that they use it for the above purposes and also for entertainment. Only 23 respondents said that they use the internet to explore sexuality and erotica; only two students were using the internet to share intimate images with boyfriends (Appendix-I, Table Q. 2.10). From the data, their use is mainly of WhatsApp – 284 of 305 are using it, while 250 use YouTube; in the experience-sharing sessions as well in the written responses, WhatsApp was identified as the 'safest'. This is in line with the above finding, that the surveyed students use internet to connect largely with family and friends and for entertainment (Appendix-I, Table Q.2.12). A relatively smaller but significant number -182 of 305 - use Facebook (besides others)(Appendix-I, Table Q.2.12). Only 2 out of 305 respondents were reportedly using dating apps (Appendix-I, Q.2.12) even though 53 knew of them. One hundred and ninety student respondents knew of matrimonial sites (Appendix-I, Table Q. 2.11), but marriage seems to be mostly a family-determined affair, if we take seriously the fact that just 2 responded that they were actively using

^v The fear of the digital leak has been around in the Malayali public since some time now, for example since the movie *Chaappa Kurishu* (2011) and more recently, *Drishyam* (2014). There have also been subversive political deployments of the leak. As Navaneetha Mokkil (2019) notes, the Kiss of Love protests of 2015 relied on the possibility of precisely such 'leaks', of the wider circulation of the digital images of couples kissing in public in protest against moral policing characteristic of Malayali society.

matrimonial sites (Appendix-I, Table Q.2.12). Fifty-seven per cent of Muslim and 48 per cent of Christian communities said that they used the internet for 'safe' pursuits (Appendix – 1 Table CT 2.10*1.6) -i.e. for connecting with family and friends, studies, and entertainment, while 35 per cent of the students from Hindu communities responded likewise – of the total sample, 43 per cent reported limiting their internet use to 'safe'. In contrast, the level of reporting 'dangerous' (exploring materials on sexuality, erotica, and sharing intimate pictures with boyfriends and others) pursuits seem uniformly low for women of all communities (Appendix-II, Table CT 2.10*1.6).

However, a closer look at the profile that emerges through the data may reveal a complex picture. Even as women students seem (above) to be staying largely within the bounds of what parents and guardians approve of, they seem to be reaching out, or approve of reaching out beyond family- and community-delineated spaces and family-approved interactions and therefore seek to do more. Out of the 305 respondents, 52 say that they seek new friends and relationships through the internet; 48 students say that they use the internet to seek advice on matters that cannot be shared with family, teachers or even friends (Appendix-I, Table Q.2.10). In other words, nearly one-third of the sample seems to be using the internet to reach beyond immediate family and acquaintance circles.

Also, respondents seem to be heavily in favour of women's right to free speech online even as they demand that women should take a share of the responsibility for staying safe online. In a situation-question about a young woman being attacked for her socially-progressive videos on her popular You Tube channel which asks respondents what she must do in the face of dangerous mass cyber-attack, very few (33) blamed the woman entirely; nearly 73 percent felt that she should not take down the channel (Appendix-I, Table Q. 3.2). This response was spread evenly across communities: 86 per cent of the Muslim students, 93 per cent of the Christian students, and 92 per cent of Hindu students felt that the woman should not succumb to cyberbullies (Appendix-II, CT. 3.2*1.6).

But in response to another situation-question about a woman who had shared her nude pictures with her boyfriend who was now using them as revenge porn against her, 84 respondents placed the blame entirely on the woman (counting responses that faulted the woman claiming that she should have known better, responses that blamed the woman as it is she who gave him the images in the first place, responses that mentioned both these, and finally, responses that mentioned either one or both of these and offered 'other opinions', which were mostly justifications of these choices) and that though only five respondents justified the man. Fifty-nine percent believe that the woman should have anticipated the man's behavior. Only 18 per cent felt that the man was solely to blame. This apparent gender conservatism seems to run more or less evenly across students from all communities, as is evident from CT 3.1*1.6 (Appendix-II). A significantly large percentage of respondents – 45 per cent -- blame both (Appendix-I, Table Q. 3.1).

Is it the case that the respondents value a critical public identity that rests on collective appreciation (as the one sought by the young YouTuber) over the sexual gratification or pleasure sought by the woman who sent intimate pictures? Clearly it is evident that they do feel that in the trade-off between building up one as a public persona and staying safe, the former is more valuable than the latter, and in the trade-off between sexual pleasure and avoiding endless torment through revenge-porn, they prefer the latter. This could well be related to the fact that a certain degree of social sympathy and formal redress is available to the woman who seeks a public identity who is attacked, while the woman attacked through revenge-porn receives little other than condemnation universally. More importantly, for the survivor of revenge-porn, the path to social citizenship and public presence becomes thornier than ever.

Therefore reading the responses to the revenge-porn question in the light of the response to the earlier situation-question on women's participation in public debates through a YouTube channel may reveal that they may not be victim-blaming but demanding that women should take care not be vulnerable in a world that is so unfair to them (Appendix-I, Table Q. 3.1). If that is the case, then these women may be read as recommending the use of the internet as a resource to build one's identity on one's own, avoiding uses that may make one socially vulnerable in ways that destroy any prospect of a public identity. It is abundantly clear that young women perceive social conservatism as nearly insurmountable and prefer to avoid direct confrontation – and this gives us a sense of the seriousness of slut-shaming on social media and clear reasons as to why law-enforcement should take it seriously.

What truly struck us was the sharp difference between the expectations of justice most of these young women seem to have (evident in the above discussion), and what seems just to the police (which will be discussed later). The young women clearly believe that the woman seeking social citizenship and public voice deserves justice – the protection of her rights as citizen, while they are willing to admit that in cases of revenge porn, the woman is partially at fault if only for being rather incautious. As we will see later, police officers seem to believe the exact opposite. They seem more sympathetic to 'innocent' or 'foolish' women who have been 'seduced' (in the police officers' understanding) by unscrupulous men and whose marriage prospects or family stability seem threatened now by their sharing. Also, they seem relatively less sympathetic to women who are punished for voicing strong opinions online and participation in online debates.

There is, then, such a group of young women who seek citizenship online. We now turn to some of their strategies.

‘Cinderella approach’ and other Strategies of Resistance by Women

A great many young women also told us that they resented such control, especially because it was not parental control per se but actually community control through parents. “My profile is checked by sundry neighbours and others who blow it up big to my parents, and instead of seeing for themselves or asking me, they get all agitated,” said a young woman studying in Thiruvananthapuram. “My profile was hacked once by someone – probably someone I rejected on FB – and obscene images had appeared there,” said another. “When I returned home I noticed that the normally-friendly neighbours and relatives were staring at me strangely! They had all seen the pictures, but you see, no one told me. I got to know only when I got home.” Dressing styles are important points of conflict between these women and the ‘community’. “If you dress well, people never think you do it for yourself, they think you do it for them. That’s people’s attitude,” said a young woman from a college known for ‘women’s fashions’. She was referring to how selfies in clothes deemed ‘modern’ or ‘forward’ immediately elicited unwelcome attention from strangers, brazenly expressed. “They think that a girl who put pictures of herself smiling or in a pose in a way that is different, then they think she is out for sex,” she continued. Changes in dress almost always send a red-alert to guardians. “It is terrible – wear a sleeveless dress in a selfie that you upload, and you get inundated with comments and advice by your folk about being decent, safe etc.,” said a young woman who is from a rural area but studying in a city. “They all want me to stay a *paavam* village girl. I can be what I want to be at least on FB!” She did not miss the hypocrisy and continued to say that nobody wanted to stay rural in any aspect of life in the long run, “but would still impose their [gendered] understanding of the rural on us girls.”

All this indicates that there is a struggle ongoing between many young women in Kerala and their patriarchal guardians over the control of both their bodies and body-images, and the time they spend online, and that they do resist. In the experience-sharing session, many women joked that they preferred pre-paid mobile plans to keep parents from finding out how much data they used! (The survey shows that 86 percent of respondents used the prepaid data plans, Appendix-I, Table 2.8). They make strategic use of their online presence in quite unexpected ways. For instance, a young woman who admitted freely that she looked for pleasure online and learned about sex there, recalled making sure that a ‘good girl’ image was first created to throw guardians off-guard:

My sister had uploaded a picture of hers onto Facebook. I don’t know if it’s slut-shaming, but it got a lot of negative comments. And she was scolded for being online after 11 p.m. I was interested in maintaining my ‘angel’ image. And I decided, when I start an account, I should go the ‘right’ way. Everyone should say that I am good. To get a ‘good girl’ tag. I wouldn’t send requests to boys. My social media had very high walls.

Other ‘good girl’ tips included posting photos of night-outs or with men carefully, making sure guardians did not see. Another woman student who said that she now used the internet confidently to explore topics and issues that her family and immediate kin considered taboo for women recalled her early days of using the internet – very diffidently, but learning all the time. She related how she managed to stay online without becoming the target of attacks by strangers and also keeping her guardians unsuspecting, outlined what she called the ‘Cinderella approach’. This is especially interesting for it points to the agency women may exercise and the learning they may acquire even under strict surveillance and the experience of fear:

I took the ‘Cinderella’ approach. I was never even curious. I got internet only after Class 12, into Facebook in the second year of year B.A, and into WhatsApp in the first year of M.A.. I got an Instagram account only a month ago. My Facebook account was safer than the Swiss Bank! There are no men on it, except a cousin, and a boring friend of my father’s. For a long time, I wouldn’t log out -- I deactivated every day, and then logged in the next day. When I started responding to people’s comments, I would comment, and then deactivate because I was scared of what the response would be. I was scared to put up a profile picture. I added one only after becoming a researcher.

If very many women students admitted to have left Facebook and social media in general or migrated to other spaces such as WhatsApp and Instagram perceiving greater safety in them, an equal number were vocal about the possibilities of self-building that it offered them, both through knowledge and pleasure. One of the survivors we interviewed, a graduate student who had taken to the internet to escape the suffocating restrictions imposed on women students in both her college and hostel, emphasized the fact that a project of self-building would have been impossible for her without the internet and the social media. Through these, she found for herself a group of friends and interlocutors with whom she could explore debates on women’s bodies; the knowledge shared on social media became a vital resource for her since access to it offline was not just meagre but also strictly controlled. Other women, participants in the FGDs, were equally certain that the internet brought pleasure into their lives, of the kind they could never have experienced in their bounded spaces. These are some such voices, below:

After studying, the most pleasure I get is from films. I watch movies online. Bollywood films especially SRK! Now I don't have to wait to hear my favourite dialogues or songs. When we used to wait for long earlier. Also, I got an exposure to fashion. Thirdly, I cannot thank photo editing apps enough!

Since I'm very cut and dry, people do hesitate to come talk to me. So with social media, they feel safer about sending a smiley or two. So I've made more friends. ...When in school, we used to get seminars on the negative sides of sex, 'bad touch', harassment. But as to how a child is produced – no one really knew, no one tells you that. Even our biology teachers wouldn't answer us. I was 20 when I found out what really happens! ...Internet and my phone gave me my first love. I was able to propose to a guy. I consider that a great achievement!...

...The internet is the first place we're really alone in. Everywhere else, your parents come drop you off, pick you up, your friends are around. So here, we can go to any limits. We have to be able to manage ourselves. I feel confident about it.

(Respondent, FGD)

Pleasure, well it grew with me a lot. I learnt about sex through the internet. I've watched porn. I was scared about the internet for a long time. The Incognito mode was a great discovery! I enjoy YouTube, and a lot of video sites. It became a place of leisure. That became pleasurable...so more than personal interactions, I enjoy the content. I consumed it a lot... I think people say you have to suspend your feminism to some degree to enjoy romance...maybe that is partially true! A willing suspension of rules ...

(Respondent, FGD)

I watch films at home with my brothers. There was no problem in watching the most violent scenes with me, but when intimate scenes came up, they'd change the channel! They'd send me to the kitchen and watch by themselves.

I started with YouTube – I wanted to see what they were seeing, and what they wouldn't allow me to see.

(Respondent, FGD)

The best thing that happened to me was when WhatsApp released a 'middle finger' emoji. I could cuss freely, and that gave me a certain sense of liberation. There were WhatsApp groups and I could say the f-word, there was also pleasure that comes with calling a rapist a son of a bitch! Also, with regard to sex ed, I read about it on Wikipedia. Now that I say it sounds pathetic (laughs)... but I didn't watch videos. I read about it on Wikipedia!

(Respondent, FGD)

The above quotes bring out clearly the ways in which young women value internet access and social media as spaces of free self-building. This however does not mean that they romanticise any of these spaces. The young survivor who we interviewed made it clear that she understood the dynamics of capitalism that shaped Facebook which deployed user-time, for example, and therefore did not want to spend too much time on it. Even when such awareness is absent in most young female users we spoke with, they see pleasure and danger intertwined in them, and the necessity of taking risks to build them-selves away from purely patriarchal frameworks of self and identity.

The claim is not that self-building translates automatically into social citizenship; clearly, they are geared to different ends. Self-building is a conscious act of using the affordances of the medium to one's advantage to craft a self on one's own. This can be of different types depending on the way the subjects engage with digital publics as a source and support for this transformation (however fragmentary this process might look like). Firstly, these could be individual acts of negotiating cyberspace through which you attain a sense of comfort where codifications of restricted mobility no longer affect you. It is not that everything around you has changed, but you no longer have to consider yourself as inferior to anyone else and can vocalize your discomfort and lack of level-playing field. Secondly, it could also mean mobilizing the public interest that an exceptional act has elicited to your advantage and use this partial visibility to galvanize a public presence around it. This is well-illustrated by the experience of the young female college student Hanan Hamid,¹² who was initially embraced by the social media as someone who has tried not to let the disadvantaged background deter her from her self-building endeavors. The self-same social media started to shower abuses on her when she refused to play by their rules of what they expected from an ideal victim. Thirdly, these could be part of the individuation process whereby you do not expect any tangible results immediately. But then the energy and experiences that you have gathered through interacting in cyberspace is used for negotiating long-term benefits that can help you realize your potential. Of these, the first and third instances (idea of individuation and work towards a long-term benefits) are factors that mark social citizenship, while the second one is part of the self-building endeavors that the medium allows for.

Also, the use of cyberspace to fashion one's identity is not necessarily a complete process. It is an open-ended process that derives its energy from the ruptured and fragmentary modes that underlies it. The subjects – our FGD respondents, as well as the graduate students who shared thoughts and experiences in the survey -- are deeply aware of the fragmentary and partial nature of their engagement in cyberspace and the potential it has for accommodating failures. Many respondents used internet to gather enough resources to cultivate the required tactical moves that can help them understand different modes of navigating the cyberspace. There is certainly a future-oriented mode of situating social citizenship; because it is not seen as already arrived or completed through certain acts. Instead, it is seen as something that can help in long-term negotiations. This “not-yet” nature of the attainment of social citizenship is something that allows the possibilities to use cyberspace to figure out what “could possibly happen.” This futurity can be read as both shaping a self-fashioning subject as well as to understand the short-term and long-term benefits in cultivating the required courage – or more literally, ‘own-space’ – *thantedam* - as one of the respondents put it).

To reiterate, the assertion of agency in this context is not always seen as a positive attribute that can immediately bring in change or transformation. The resistance here is tactical and positioned to calculate how far and to what extent one could push the challenges and work through the possibilities available. The patriarchal logic of using women as tools to further their subordination is something that the respondents are aware of, even though the exact mode of resistance might vary depending on how they want to deal with it. It is also true that the rhetoric of agency can be used precisely to reinforce women's subordination, as it appears from the cyber assertions of the female cyber supporters against women's entry to Sabarimala (whether it be #Readytowait or the women supporters of *namajapayatra*). But the idea of “delicate dance” that emerged in our study is a tad different. It is more about strategizing moves that can help women in the long-term negotiations. The delicacy here is more so because of the awareness of the constraints that condition their day-to-day actions. As one of respondents in an FGD said, her engagement in cyberspace is like recouping energy to gather strength for a “bigger fight.”

But this is not to claim that this self-building is free of problems. For example, from the accounts of respondents who told us about how lesbians had tried to message them, it appears that the encounter only enhanced their homophobia. Clearly, the self-building that Facebook allows is often hampered by its echo-chamber effect. In our survey we found no basis for this fear. Respondents who said that they had experienced harassment, abuse, or unwanted behaviour from others online in the past one year reported the identity of the harasser to be overwhelmingly male – nearly 76 percent (11 per cent of the respondents said that the harassers were of both genders, and nearly 13 per cent were not sure) . Just one female harasser is reported (Appendix-I, Table Q.4.6).

Secondly, the narcissism that social media is widely noted to encourage (Singh et al 2018) has consequences quite deleterious to self-building. Our survey indicates that bullying about body image – weight, body shape, skin colour, and looks – is noticed more frequently as happening to self/others. Of our respondents, 59 claimed that they/others they knew had experienced shaming about body shape; 36, about weight; 45, about looks, and 30, about skin colour (Appendix-I, Tables Q.4.11(i), 11(j), 11(k), 11(l)). In all, 170 respondents experienced/knew of others experiencing bullying around looks. Compared to this, the numbers of respondents who claimed that they/others they know faced bullying about caste, community, religion, nationality, economic status, and race were much fewer: 84 only. Of these, those who noticed community bullying were the highest number (23); caste bullying came next (22). The echo-chamber effect of the social media is also probably at work here, with women students largely isolated from politics and the oppositional civil society and so noticing less of shaming and bullying of others in the name of community or caste belonging.

Also, the persona built in and through social media can be hopelessly fragile in itself. The experience of a Malayalam college lecturer, Deepa Nisanth, who built for herself an enormous online following with her criticism of Hindutva attacks on a beef-eating festival that was held on her college campus in 2015 is a case in point.¹³ In just seven days, the number of her Facebook followers crossed 70,000, after the Chief Minister Pinarayi Vijayan supported her on his page. The campaign #supportDeepateacher went viral too. In the years after this, she converted her online following into offline readership, with her books, compilations of her Facebook notes, becoming huge bestsellers in Malayalam. The first of these was published within a week of the controversy.¹⁴ However, this by itself did not assure presence. In 2018, Deepa Nishanth was found guilty of plagiarism, and the tide on Facebook turned against her sharply with heaps of accusations made online – however because she had also amassed by then considerable weight in the mainstream left, she also received considerable support from the adherents of the dominant political force in contemporary Kerala, Communist Party of India (M) (CPM) online.

Marginality and the Experience of Cyber Harassment among Women

What is striking about the above responses from focus group discussions is that they were inevitably from women students who were upper-caste, urban-based, middle- or upper-middle class, older, and in post-graduate education, and generally with considerable social and cultural capital. These are in contrast with responses by younger female graduate and post-graduate students who participated in the focus group discussions, who are rural-based and lower in the hierarchies of socio-cultural capital including caste (even though not in class terms always). The latter seem distinctly disadvantaged in their ability to survive harassment online though they are keen to stay online.

But a significant number of all students surveyed admitted to have dropped off Facebook and other online media or deactivated their accounts regularly. In our survey, the numbers of those who had to delete their social media accounts at least once or continue to stay offline was 30 – one-tenth of the sample (Appendix-I, Table Q 5. 1(o)). Of the 130 students who reported having faced online harassment in the past one year, nearly 100 encountered it on Facebook (besides other places) (Appendix-I, Table Q. 4.2). The majority (55.5 per cent) experienced this once, but a sizeable number had multiple experiences (37.5 percent) (Appendix-I, Table Q. 4.4), and 76 percent of the harassers were reported to be male (Appendix-I, Table Q.4.5). Among those who answered the question whether they knew someone who had faced harassment online (290), nearly half said yes (Appendix-I, Table Q.4.9).

The strategies used by women, particular younger female graduate students, with lower social capital and rural backgrounds which they shared in the FGDs, are fewer and more dependent on protection from family and others. Leaving one platform for another perceived to be safer, alerting male relatives who undertake vigilante action on the offender offline, using tools like blocking frequently, creating 'joint accounts' with brothers are some of these – and these seem to have been often a first-step towards exiting. One strategy that some of them proposed was outing the harasser, but this too was not recommended for all: "Sometimes it works when you stop telling him to leave you alone and instead put up the irritating chats and messages on your page, clearly saying that this guy is harassing you and if any kind of bad stuff appears about you – i.e. if your page gets hacked or obscene images of you appear somewhere -- he is likely to be responsible. Now this will work only if you are hundred per cent sure you can convince your family that this is all his fault!"

However, some stories we heard from this group of women also highlighted the importance of collective response – women students acting together against online harassers. One story we heard was about women students in a hostel who were targeted by a harasser who obtained their photos and began to upload them with obscene comments. The women decided to act as a group and "refused to blame each other." They complained jointly to the cyber police who acted. "Because we complained as a group, they did not try to inform our parents – if they did that many of us would have had to back out. And since we were like seven, eight people, with more people saying that they too suffered but didn't want to formally complain, we were taken seriously." In another instance, a woman friend helped another who was being cheated by a man she had met online and developed feelings for. Her own brothers would have blamed her, but not her friend's – the friend's brothers promptly sought him out offline and gave him a sound thrashing.

Class, caste, political influence, and social capital, thus, matters in the manner in which women are able to respond to cyber harassment even though all women seem to be facing it more or less alike. In some cases we observed that caste could trump all the other advantages a woman enjoyed. This was particularly marked in two survivor accounts. In one, an extremely successful, well-placed woman with considerable public presence married to a lower-caste political leader found herself the target of cyber-attacks – which were actually aimed at her husband. On the eve of a recent state elections, WhatsApp messages calling her a prostitute along with morphed images began to circulate in the political constituency he worked in:

I also think that there is also a social aspect – as I said, my partner is a lower caste working class man. He rose from there. I however come from a very comfortable middle class family...I know well that there were tensions ... when we got married. In their mind, they imagined him marrying ... definitely not a ... popular, outspoken, critical woman. They also have been uncomfortable with his upward mobility I didn't complain then as it would have worsened things for him. He was totally unfazed of course but I did feel terrible for him – that he should face such hurdles in politics just because he married a woman who has a public face, and therefore can be so easily derided, like me.

This woman had complained to the cyber police in an earlier attack which used her morphed images, but this time she was powerless to complain – because she knew that the harassers were possibly her husband's political enemies, and her complaining would make things worse for him. In another survivor account, the women targeted did not lack class, caste, social capital or even political influence, but were targeted for their lifestyles – their insistence on taking care of stray dogs – that were deemed not just vulgar and annoying, but lower-caste as well. Recounting their experience, one of them remarked that until recently, the shared upper caste-class identities in that neighbourhood seemed to have

protected them, but soon that evaporated, and they were subjected to simultaneous online and offline attacks.

However, it appears that for the extremely marginalized transwomen, risks and dangers are much more than that of relatively-disadvantaged cis women, but social media is a very highly valued space – all five transwomen who spoke with us insisted that there was no question of quitting online spaces and social media no matter what the harassment may be. All of them attributed to social media interventions considerable credit for making transpeople more familiar to others, for allowing them to raise their issues, and forge protests. “You cannot imagine how important WhatsApp groups are for our safety,” pointed out one of them. “In a city like Kochi where the police are hostile and we are often attacked even if we aren’t doing sex work, WhatsApp group allows us to gather quickly to aid a sister who’s being attacked.” “We are used to being harassed and attacked offline almost constantly; so the online harassment isn’t something we can’t handle, especially when we have the right tools like WhatsApp,” she added. Secondly, being extremely marginal – as people fighting not just deprivation but outright abjection – transwomen are not bound to follow the norms of respectability imposed on women offline and online. Nevertheless, they felt that the challenge for them was to attain a balance – between using, for example, cuss words liberally to deal with transphobic trolling, and presenting an image sufficiently ‘respectable’ to engage with others in social media (all our interviewees are very active on Facebook). But they were unanimously certain that the benefits and pleasures of the social media outweighed its dangers. For them, most importantly, social media offers space for self-crafting – for building a gendered identity from the scratch in public. This perhaps is in contrast with young and relatively-more disadvantaged cis-women who sought to stay in online spaces but insisted that they would choose strategic ways to use it rather than enter into direct confrontation with their guardians.

But whatever be their social location, women in general suffer very serious social offline consequences from cyber harassment – the stories we heard ranged from women living in constant fear of fake profiles and images circulated without consent even after they exited Facebook, severe restrictions on mobility imposed by family and educational institutions, physical torture, curtailment of education and work opportunities, continuing threats (for example, of acid attack or rape), slut-shaming and exclusion from community activities, early marriage, and breakdown of marriages/engagements. They suffered from depression and psychosomatic ailments frequently and this affected studies and social interaction as well as work seriously.

This was abundantly clear from the survey data. Forty-three percent of the respondents to the question whether they had faced harassment, abuse, or unwanted behavior when online that made them feel afraid, depressed, alone and/or angry answered in the affirmative; while the experience was in the past for the majority, for a small minority of around five percent, it was ongoing (Appendix I, Table Q.4.1). Women who suffered harassment who reported that they had felt afraid of using devices to go online (24), became diffident about posting messages online (30), reduced using devices (28), and those who changed their phone numbers (25) and deleted social media accounts (30) either at present or in the past (and beyond the past year) (Appendix-I, Tables Q. 5.1(a)-5.1(q). Women also reported anxiety (43), fear (45), feelings of isolation and helplessness (35), depression (31), self-harm (19), and negative physical health impacts (20) either at present or in the past (ibid.). Women who suffered social decline, i.e., who felt afraid of going out (31), who distanced themselves from friends and family (18), who experienced distrust of friends and family (20), and who saw a sudden fall in academic performance (21) either at present or in the past (ibid.). Of course, many women experienced more than one form of these debilitating and oppressive feelings.

From the qualitative data too, it is clear that sufferers ranged from upper middle class women who had entered prestigious institutions like IITs to lower middle-class graduate students travelling to local colleges and back. Even empowered women with high-end jobs have to pay a huge toll, especially at work, as a survivor supporter reminded us. She shared with us her experience of taking legal action for two women, a senior software engineer, and a high-level bureaucrat, who were being targeted by envious colleagues through doxxing. Fake profiles were created for them on numerous matrimonial sites with all details, including official email ids uploaded, and the more the women tried to delete them, the more they were produced. Soon these women had to struggle with flooded mailboxes leading to severe consequences at work because important material -- urgent government files included -- inevitably bounced.

Male and Female Students Negotiating Cyberspaces

The FGDs with male students brought to our notice certain strikingly gendered features of Malayali cyberspace. It seemed that for male students, their cyber networks and spaces were mapped perfectly on their offline spaces – and they extended their offline networks. Both male and female students told us about the wild popularity of local young men’s WhatsApp groups – named after particular places, for example, ‘Ulloor boys’, ‘Venjaaranmoodu boys’ etc. These form major channels, it appears, for the circulation of information and advice which help teenaged males to attain the macho necessary for masculine and patriarchal self-assertion in local places and elsewhere. These include getting fluent with cuss-words, making memes, fighting on the side of film stars/political parties, sending women messages (“hooking”) or chatting them up using fake profiles, and watching porn. ‘Managing’ young women from their vicinity is one of these activities.

What women mention as unwanted harassment is spoken about casually by young men, as normal. Women respondents in the survey (85 respondents reported this as something that had happened to them or reported to them by others, Appendix-I, Table Q.4.12(k)) and in experience-sharing identified the following (and more) as harassment:

Calls from unknown numbers proposing marriage.

Continuous messages saying that he likes her.

Continuous messaging with songs.

Continuous asking for pictures.

Continuous stream of jokes.

In the FGDs, male students found most of this innocent fun, even while admitting that they can tip into harassment. Most thought that a sexist joke can be more or less tolerated especially if it does not correspond to reality. For example, one of them who believed (wrongly, of course) that women now receive equal pay with men felt that a sexist joke about discrimination in wages can be tolerated since that is in the past. What seems evident is that young men do not realize that 'checking out' random women by sending them continuous messages constitutes harassment; instead they consider this part of 'being male' and argue that a woman who dislikes it can easily use the Block option on Facebook.

More worryingly, 'joint stalking' through all-male groups also seems normalized, as is evident in the account by a young man from a mixed college:

I have never had a fake profile, but my friends have. And they would tell me, 'you absolutely have to get fake accounts. You like that girl, right? If you really love her, using a fake account is the only way to really discover her true character. You can really know what is in her heart. She might be a kozhi (a hen - a slut).'

Colleges here have all these names...Holy Angels is Vedippura, Cotton Hill is Kozhikkoodu, and so on. (Derogatory ways of referring to these women's colleges)

When I was in school, many boys would go around to all these girls' schools. They wouldn't take me with them, because I would not join in. All the updates would come in our group - I went here to meet this girl, I went there to eat with that girl, and so on. She's good, she's not so good, and so on.

The disadvantage to women from such networking by young men was clearly evident from stories shared by young women:

I had a friend in college and he came and told me that he likes a girl. But she was very good looking, and he was not that kind of person. He was a geek....now, he would message her. Girls are not as well-connected as boys are on WhatsApp. They have class groups, hostel groups ... and they share everything with each other. That's not the case with girls. One day, it turned out that that a video of that girl's sister's, one of her completely nude and having intercourse, was circulating everywhere. Their family was very orthodox. He was shocked by the comments in the groups... no one speaks against it, and if they do, everyone attacks them.

[Respondent, FGD]

When I was in the degree class, I had a friend. My cousin told me that he is good friends with her boyfriend. This boyfriend was cheating on her, but was telling everyone that she was a prostitute. And there are these boys' groups in areas... 'Venjaramood Boys', for instance. So if they have a problem with some girl in another area, they will share photos of her in their group.

[Respondent, FGD]

Male student networks allow them to institute informal if widespread surveillance on women students, especially from their 'native places'. They are especially wary of being tricked or used by a woman they date – which is called *oottuka* (milking someone) or *kothippichuviduka* (cock-tease) and male camaraderie is identified in sharing information about those women. FGDs with male students also confirmed that men do react to women's selfies, and also to women's self-presentation as emotionally needy, interpreting it as an invitation – and that they consider this very normal. Any partial capture of a woman's body part can be interpreted as her sexualised 'private' and offered up for consumption:

There was a Vijay Sethupathi film that came out a few years ago.... I can't remember the name. But the story was of a girl... her friend captures a video of her... Not even a making out video, but just her going into the bathroom... and Vijay's friends upload this on to the internet. The girl commits suicide as

a result. Her friend then gets involved with Vijay following all of this, and then the both of them commit suicide too at the end! Very intense!

After that film I remember that some people were a little worried about sharing videos that had been shot without the women's consent. Others, of course, didn't care, and they said 'no woman is going to jump from the top of a building just for a video of her in a bathroom.'... some people are into 'Exposing videos'...of boobs, or navels... Some people are into a particular hairstyle...

Interesting too, are the words that have emerged in the Malayali social media to refer to cyber violence against women. The most striking and commonly-used word is *ponkaala*, to refer to mass trolling and cyber bullying of women. Some of the male students interviewed seemed to think that this is a gender-neutral coinage, and the victims of such abuse could be of any gender. However, it is striking that the origin of the word does refer to a special kind of worship in Kerala's temples, usually of the Goddess, for example, the famous *ponkaala* festival at the Attukal Devi temple in Thiruvananthapuram. This involves women devotees lighting small hearths all around the temple and cooking offerings to the (female) deity. The use of the word *ponkaala* to refer to cyber trolling therefore may be ironic and less gender-neutral than supposed.

Given this normalised toxic macho culture circulating among young men, it is no surprise at all that in almost all the high-profile mass cyber-bullying cases, the culprits nabbed have tended to be young men, often teenagers. Breaking with such groups or dissenting within carry huge consequences, as a male student who identified as a feminist recounted. His positions against normalised misogyny in young male groups made him a target of intense attacks; finally, his participation in the anti-moral policing Kiss of Love protests were twisted by these groups and he was widely slandered as a 'sex trafficker'. This had serious offline consequences for him – he was expelled from his family and has since then sustained himself on his own. The attacks against dissenting men too can be highly gendered: "Men like me are instantly blamed for being too 'womanly'. The others will start asking you if you are an *akkan* (older sister, literally, but a derogatory word for transwomen) or a *pennan* (an effeminate man)!"

This normalised misogyny also explains how young men with some technical skills move quickly to monetise the images they encounter online and create new ones through morphing. Describing the men who were caught on her complaint about the expert morphing of her images into porn and their circulation, one of the survivors interviewed said:

They turned out to be the opposite of what I'd expected – I thought it must have been someone who had political differences with me, but these were two boys, 18 and 19, engineering students from Chalakkudy. They had done this for purely financial purposes. They were making a lot of money from Google getting hits for their blog. They had also used images of many other women.

There is also reason to think that male bonding of this sort is also a response to relative disadvantage in terms of class and location. 'Native place' appears in diametrically opposite ways in the narratives of male and female students. For male students coming from rural areas to study in the city, it is a source of connection and camaraderie in a new place. As one of them remarked:

I come from a pukka village tradition, and because I have not been able to find a friends' circle like that anywhere else. So I'm still the most active in the groups with people from my native place. We are all friends, we studied together for about 5 to 6 years. There are friendships here in college too, but the older friendships are still the most active ones. Because we grew up together. We can use cuss words with them with much more freedom than you can with the people here!

In sharp contrast, during the experience-sharing session with women surveyed, many of them from less-privileged backgrounds were emphatic about how the social media was primarily a way in which 'native place' kept a tab on them. "The worst harassers are people from our 'native place,'" said one of them, "and many of them threaten to make obscene images of us and show it to our families." Others mentioned how they felt constantly stalked online by neighbours, friends of family, people in the locality etc. "People always think it is a duty to keep a watch on girls in their neighbourhood, and this is an extension of that. Never add people from your native place in your Facebook page."

Interestingly enough, this different relation to cyber space puts women at greater risk of harassment by close kin. The worst features of domestic spaces controlled by patriarchal authorities may be present, including the prospect of being sexually used by close relatives. From our survey it emerged that nearly 30 percent of respondents who had faced harassment knew their harassers, and another 16 percent knew them in some cases. out of 57 respondents to the question, 53 said that the harassers were family members, classmates, someone in one's community, friends, ex-boyfriends, teachers, or acquaintances; even those who wrote in the 'Others' column mentioned cousins, 'friend of friend', teacher, i.e. options they probably missed in the questionnaire (Appendix-I, Table Q 4.8).

The risk is in fact even amplified, since the attacker can well mask himself, and thereby bypass the moral familial and kin obligations to the victim which may have provoked her to resist early on and publicly complain perhaps. Had this happened in public space, the possibility of her recognizing the harasser for close kin and demanding that he conform to kin obligations may have been stronger. One of the most harrowing stories which showed that the dangers from the harasser's anonymity may actually be a real possibility was shared by a cyber activist. A teenaged schoolgirl from an ultra-conservative family was persuaded by her friends to go with them to a movie, and then to a restaurant frequented by young college-going males. A cousin of hers spotted her and decided to take advantage. He created a fake profile, claimed that he was a friend of this cousin (i.e. his own friend), and told her that he had photos of her unsanctioned outing which he intended to share with her family, especially her cousin. Frightened, she agreed to do as he said and consented to trafficking a few times (with him staying invisible, directing the operation through friends). Then she decided to tell him about his 'friend'; and this became a chance for him to sexually assault her. She finally found out that he had trapped her, but because she had been trafficked by then, she was scared to complain. Finally, a teacher in her school came to know of this and her intervention put an end to this exploitation. The police intervened and the family had to comply; however the family decided to keep these totally 'private', i.e. settle the affair outside court, affirming intra-familial hierarchies once again.

This perceived need for domestic cover helps us make sense of the observations of police officers and survivor supporters that one reason why an upswing of complaints about cybercrime by women in 2012 failed to translate into actual cases was that a lot of women came to realize that they were being harassed by close male relatives and others – uncles, even fathers-in-law, brothers-in-law, close friends of their spouse, boys in the neighbourhood, close colleagues, friends of their children and so on. The revelation, instead of leading to the filing of a case, would have led to the exact opposite, with offline gender hierarchies working now.

During experience-sharing with respondents, some students said that they did approach the cyber cell, but not directly but through relatives and their parents' friends and contacts who had good relations with some officers. They said that because prior arrangements were made, they experienced no difficulty at all. This probably explains the data in Table Q.6.4 (Appendix-I), which shows that out of the fifteen who shared their experience with the police, not a small share – 8 – felt that they were helpful and started their investigation in a timely way.

Finally, women seeking to find a public voice through social media find it an uphill climb, especially because of mass attacks by cyber trolls. Reflecting on the higher virulence of cyber trolling against women seeking public voice compared to offline attacks on them, a senior lawyer supporting survivors criticized the widespread projection of cyber trolls (shared by the police as well) as 'boys out for some fun'. Instead she pointed to the manner in which online spaces allow the amplification of what are common violent practices unleashed against outspoken women offline. This observation is of special significance when we consider the fact that every click on social media constitutes an act of labour that actually produces that space, and therefore cyber-harassers are producing value for social media corporates just like, or actually more, than peaceful users. In her words:

I can say that this is a form of adicchiruthal ['forcing to sit down']. That is, a mass booing, that would force the woman to shut up and back off ... Most women had no experience of speaking at a gathering, and definitely little experience in debating. That lacuna began to be felt less with online access, since women were now not constrained by time ... or the challenge of having to face so many faces – faces that would be judging and evaluating even though not always hostile – in a real audience. I think that has spurred women's ability to argue, to use strong words, and especially to use humour! This is provoking a lot of male insecurity. In our schools, colleges, homes, and most organisations, women are not really encouraged to be sharp and argumentative ... and maybe when they appear to be meek offline but turn out to be quite acerbic and assertive online, something like an uncontrollable desire to punish ... is activated? In an offline gathering, maybe an active woman would be suppressed with a couple of sharp retorts, but when it is online, you don't know if she has really backed out. You have no way of checking if she's really flustered, sad, contrite! So you go back again and again, get your friends to join, and keep increasing the intensity of the attack till you are satisfied, till you feel the woman has been effectively silenced! That is perhaps why these men, young and old, are so intensely violent, so unashamed of using all kinds of tactics, below-the-belt blows, in online conflict especially when a woman is at the centre.

Cyber activists noted a shift in women's attainment of a public voice through social media since its early days. As mentioned in the introduction, the early years did witness collective action by women online for gender justice. However this seems to be on the wane, according to them. "Now there is a shift towards individual women carving out voice and space in a culture of mutual competition, not cooperation," noted one of them. "Offline activism is no longer a must, it appears, for women to gain prominence even in the left parties. Online presence is very vital too. The support of a key political party with massive presence in the social media is the cushion you need ... it can actually protect you from mass

trolling even, and more importantly, exempt you from moral evaluations that you may have been subjected to otherwise.”

Some of them feel that the presence a large number of powerful female voices in the social media, however much may they be in competition with each other, is a positive development. However, this does not translate automatically into mutual support: online friendships are ephemeral compared with offline connections, and what really matters is family support. As the young survivor we interviewed remarked about the response of her friends online during her trying times:

But I did feel that my friends in the xxx movement online – most of them I know through FB – were not supportive enough ... but then that's probably because one doesn't really know them, they are only FB friends. I don't hold anything against them though because I never expected them to step up offline. One gets into such stuff only when one is confident about dealing this without anybody's help ...

In other words, securing online voices by women seems to call for strong offline support, of a political party, or pre-amassed social and cultural capital. Given the strongly patriarchal nature of most political parties in Kerala, there is reason to believe that these voices are more likely than not to be submissive to, or echoing of, the patriarchal leadership to some degree at least.

Dealing with Cyber Violence

Young women and men: Tackling Nuisance, Harassment, and Outright Violation

In both the experience-sharing sessions, FGDs as well as in the survey materials, young female students mentioned using the blocking tools in apps as their most common way of dealing with internet harassment. Implicit in their response was the division of the experience of cyber violence into roughly three kinds, actually phases: nuisance, harassment, and outright violation, which they seem to view as a progression. Unlike young men who treated the first of these as largely ‘fun’, the young women saw all three as serious unwanted intrusion into their spaces.

However, the three phases, according to them, called for different responses. They identified random messages sent to women online at night, unwanted messaging with songs, ‘good morning’ or such messages, or messages proposing love or marriage as ‘nuisance’, which could well be tackled through the blocking apps and other such tools. Eighty-five respondents to our survey said that they/someone they knew had experienced this in the past one year (Appendix-I, Table Q.4.12 (k)). They did not however feel that the present tools are sufficient. One suggestion made by a survey respondent during experience-sharing was that Facebook should ask for reasons when a woman blocked a user, and other users should be able to check if someone sending them friend requests was ever blocked by others from making unwanted advances. ‘Nuisance’ was also tackled by complaining to family, friends or college authorities who often acted on them; some women students also said that ‘nuisance-makers’ often retreated when threatened with a police complaint. “Sometimes you just have to just send a complaint to the cyber cell and message the email to the nuisance-fellow or put it up on your FB page,” said one of them. “This is often very effective. The chap either runs away, or comes back saying sorry.” In our survey data, in response to the question why they did not approach the police despite being harassed, a large number (67 out of 171) responded that they did not think it was a crime (among other things) (Appendix-I, Table Q.6.2).

It is likely that many of these young women saw this as ‘nuisance’; in the experience-sharing, many young women suggested that it was not necessary to get police and the law involved in such cases. They were not saying, however, that these acts could go unpunished or unnoticed – rather, they felt that they should be dealt with at the level of families, community, and educational authorities. A survey respondent who shared her experience of making her male friends understand how insulting their attempts to ‘hook’ girls on Facebook said: “Boys should be taught to respect women’s privacy, and so their families and college authorities should take women’s complaints seriously, and act firmly so that they don’t repeat those. No need to go to police, because police will immediately compare it with big cases and say that this is nothing.” An observation made by an activist we spoke with made sense in this light: her suggestion was that in training programmes, trainers should focus not really on the most heinous of cybercrimes but on those which sit uneasily on the border between crime and normal – what the women students implicitly identify here as ‘nuisance’ (*shalyam* in Malayalam). “The idea that a woman can be approached without her consent, and that you can get casual to her, is utterly normalized, and this is what lies at the heart of the worst crimes online,” she noted. In the FGDs with male students, the manner in which creating fake profiles, trying to chat women up sending them messages constantly etc. veered between ‘innocent fun’ and violation was quite evident and so the activist’s suggestion does make sense.

‘Harassment’ (*upadrawam* in Malayalam) was identified as more persistent advances, including stalking, doxxing, sending sexually-explicit images, videos etc. uninvited, frequent trolling, as well as making threats -- but without serious offline consequences yet. Responses from young women students seemed to hint that while they discussed ‘nuisance’ more freely and dealt with it more confidently, they were far more fearful and silent when it came to ‘harassment’. Also,

the confidence to speak with family and college authorities seem to dry up when nuisance progresses to harassment. Interestingly enough, many young women included stalking by families and college authorities in 'harassment', especially stalking by teachers, and consider this more serious a violation than 'nuisance'. The dilemma was put this way by a student from a women's college: "It is okay when some boys send you messages saying hi fifty times in the day – you just block them. But my friend got sexually-loaded WhatsApp messages from a teacher of ours ... he gives us grades, his parents and college principal will believe him, other students too, even ...". She also said that harassment was often treated with kid gloves by authorities, including the police when reported, something that was strongly confirmed by our interviews with lawyers who support cyber violence survivors, survivors, and activists with considerable experience online. When this student's observation was conveyed to an activist, she affirmed it, adding that "one reason why women who are 'harassed' this way do not often complain while it happens is that it is often a form of grooming. Cyber harassers like to take advantage of the various inequalities – especially of age and gender – that usually exist between them and the victims, and use it to bend the latter's will to their advantage." Doxxing and sending porn videos without invitation came up in the survey as forms of harassment more frequently faced. Seventy-six respondents mentioned that they/someone they know faced doxxing; fifty-eight respondents mentioned that they/someone they know was sent sexually-explicit images, video or text without their consent (Appendix-I, Tables Q. 4.12(a), Q.4.12(c)).

The exact nature of 'harassment' needs to be probed through further research; paying more attention to it may reveal the shared aspects of 'harassment' by strangers and by familiars. That is, it may help us understand what may be the common features of 'harassment' (understood this way) by criminals who prepare victims for 'outright violation', and by teachers, family members, and others who ostensibly seek to restrict them – the ways in which women become vulnerable to both harassers and protectors in ways that may lead to the boundary-line between the two wearing thin (as was evident in the story about the teenager cheated and sexually used by her cousin, mentioned earlier).

'Outright violation' (*athikramam*) was identified as intense cyber assaults with serious offline consequences – interconnected online and offline crime was generally accepted as the most serious violence, demanding immediate action. All interviewees and respondents were united in their view that 'outright violations' are crimes that need police and legal responses that are just, quick, and non-judgmental. All young women surveyed said that families need to open up to young women, stop victim-blaming and shaming, desist from physical and emotional punishment, and become seriously supportive if such crimes are to end. The single most important factor identified by women as enabling them to make formal police complaints of cybercrime was family support.^{vi} Part of the reason for this is that the students, the police, and supportive lawyers all seemed to agree that the nature of 'outright violation' was wholly or at least partly sexual. Given the enormous stigma attached to real or imagined sexual transgression, few women can afford to fight without family support.

Nevertheless, interviews with survivors, all four with a great deal of family support, revealed that this was just a starting point. The real hurdle lay in the police station. In each, convincing police officers of the seriousness of the violation was a laborious task even for women with considerable political connections and social networks, and even when senior police officers had already intervened on their behalf. Below are excerpts from interviews with survivors:

Local police certainly has limitations. When we went to the police station to complain about the attack on my daughter by the college lecturers, the SHO asked us questions as though we were at fault – first, we were advised to ignore it, delete our FB accounts and not go there, to just unfriend and block the offenders. When we resisted, he began to give us parental advice, that we should have married my daughter 'off' at the right time and not let her pursue education ... My daughter was so troubled, she burst into tears. Then the officer began to make some really silly comments on why she was so weak etc. Later he began to ask why we needed to go after professors, after all, they are all influential folk. Truly, we were able to get them moving only after this man got transferred and a new SHO took charge ... but by that time we had gone first to the DYSP, then the SP, and finally to the DGP ...

[Survivor 1]

... my father went to the local police station first. I don't think that was wrong; my parents were also threatened and my school-going sister too. The police officer seemed nonplussed but anyway referred

^{vi} From the survey data, it seems that out of 73 respondents who answered the question about their guardians' response when approached, 35 said that their parents were supportive. Perhaps the confusion in it relates to the fact that 'supportive' is a loose term that respondents might have interpreted to mean other things – for example, help to cover up the mess. But the table itself seems to confirm what is evident from the analysis of the qualitative data: families move to 'deal with' the situation: 21 of 73 respondents say that families confronted the harasser(s); 12 in all say that the families restricted/blamed them; and 15 say that families encouraged them to complain (Table Q. 6.17). There is good reason to think that this was with the support of relatives and others who would ensure that the police would be friendly rather than judgemental. That the police themselves think that this is 'normal' seems to be a distinct possibility, judging from the words of a senior police officer, who told us in the interview with him that "family will say, don't complain ... bad name for family. But if families are strong, they will deal with it ... send people there and tell him, you delete the photos or we will beat you. But if family is not strong, the girl suffers."

the case to the cyber cell. Meanwhile I found out that we had to complain to the cyber cell and so called the Kannur district cyber cell. You cannot imagine how totally uninterested and how rude they were! As if it was all my fault! The truth is that it was so bad I will never complain there ever, they turn you away so roughly! Rough is the word – they just want you to go away.

[Survivor 2]

Honest truth, I would have never approached then had S [one of the senior-most IPS officers dealing with cybercrime] been not so insistent. I cannot emphasize this enough: if S was not in the position he was, he could have done nothing, and I would have done nothing if S, He told me to go meet the DYSP of a police station in Trivandrum and file a complaint. So I prepared a written complaint and went there. The DYSP was already informed – S had told him – so all I had to do was to hand over the complaint and leave. Instead I was treated to a half-hour lecture on why I should not complain. He started by mentioning his own experience – of how his neighbour's son had tried to click a picture of his wife when she was taking a bath, and how this boy had been caught red-handed, and how he had chosen to forgive him, and when that happened neighbourly love had grown and the boy reformed ... then he told me this was unnecessarily catching the tiger's tail, it would only lead to more complications ... and further, how much time and money it would cost.. And how it would only create more and more enemies ... I held on and insisted that he take my complaint seriously. Then when I went home I called S – his response was, why did you talk with him? You should have just marched in, put the complaint before him, and mentioned S's name ...! Now, it is clear that these complaints are being addressed in whatever minimal way only because higher-ups like S are present. But even there, things are not always clear. When the culprits were caught, the DGP of that time advised me to keep the case secret, under the wraps, because he felt that publicity would only give more ideas to criminals ...

[Survivor 3]

Parents and Guardians: Fear of 'Leak'

However, police officers interviewed pointed out that because of the stigma attached to sexual transgression by women, and the fear that digital evidence against them would 'leak' all the more if they complained, few of those who approached them with complaints wanted to convert it to a proper case.

Family members (usually male) approaching the police rarely want proper police action even when the case invites POCSO provisions. As a senior officer pointed out, "Just about one percent of the complainants have family support, and they usually opt to fight." The rest worry about the loss of face, not just of the woman but of her family itself. But as he also reminded, the reluctance to fight a legal battle is widespread and applies to both cyber and non-cybercrime, and is also related to the fact that courts and judiciary are distant from ordinary people: "Courts are daunting for most people; getting inside the witness-box is pretty scary for most." However, interviews with supportive lawyers revealed that not just 'ordinary people' but even activists were reluctant to take the battle to court.

The survey data brings this out quite clearly. Ninety percent of respondents who said that they had faced abuse revealed that they had not approached the police (Appendix-I, Table Q. 6.1). Among the reasons they cited, reasons to do with discomfort about going to the police station, the fear of trivialization, blame, and delay there, and the anxiety that the police would insist on informing family/college authorities were mentioned by most frequently (Appendix-I, Table Q.6.2). Of the 156 respondents who answered the question why they did not approach a court when they faced harassment, only 12 said that had tried to do so (Appendix-I, Table Q. 6.5). Of those who did not approach a court, the largest group – 13.4 per cent of the total – gave the lone reason of feeling daunted by the delay and expenses; out of the 99 responses to that question, 64 mentioned this (among others) (Appendix-I, Table Q.6.6).

Interestingly, among respondents in the survey access to the police and courts seems to differ considerably. Respondents who mentioned reasons that seem to reveal lack of trust in the police and fear that the latter may be unsympathetic (responses 2-6 in Table Q. 6.2) are not evenly spread. Lack of trust seems very high among the SC/ST and OBC respondents (58, 100, and 72 per cent respectively), while among the General Category respondents, only 17 per cent showed similar distrust (Appendix-II, CT. 6.2*1.6). Among respondents who answered the question why they had not approached a court, 82 per cent of the SC respondents, 100 per cent of the ST respondents, and 80 per cent of the OBC respondents cited worry about delay and expense, while the share of General Category respondents who experienced this worry was 70 per cent. In all of the Hindu respondents to the question, nearly 79 per cent feared delay and worry, while 92 per cent of the Muslim respondents and 89 per cent of the Christians shared it (Appendix-II, CT 6.6*1.6).

So the most often route, as mentioned earlier (footnote 5), is apparently to take the help of police officers who are

relatives and acquaintances, or senior officers who are approachable, and seek a settlement outside court. Though it appears from the survey data even though few in absolute numbers, a sizeable share of women who approach the police want them to not just stop the harassment but arrest the culprits. Out of the 17 women who said that they approached the police after harassment, 8 said that they wanted this along with removal of offending digital material and end of abuse (Appendix-I, Table Q.6.3). However, the numbers of such women are few, and those who want to 'settle' are numerous, as both lawyers supporting survivors and police officials mentioned. Many lawyers and police officers found this both distasteful and undesirable. As a senior police officer remarked:

Often the success of the cyber police in intervening in certain cases or the track record of certain investigation officers that may have contributed to more people coming forward to file complaints is what leads people to approach them. When such cases appear in the media ... they track the number of the officer, call him ... sometimes through relatives and friends ... but almost always they want the police to intervene on their behalf and ensure that the contested image/video is deleted. The police had to counsel them on the need to file FIR ... Many did not want the case to be filed but want the accused to be given a warning to reprimand them from circulating the image/video.

Noting that this attitude was also common in non-cyber-crime, he continued, "I have often had to tell such people, we are law enforcement officers, instruments of the law, not your personal goondas." Lawyers who support survivors had mixed views on the efficacy of this settlement outside the law, but they all agreed that this was more often than not in the interest of justice. Relying on the police, but not on the law can be dangerous, they point out, but also, as one of them pointed out, "What is missing of course is justice for the woman. The woman would have suffered all that she did ... and the offender would have been scared, but lost little else ..."

Parents of offenders however are usually desperate and willing to go to any extent to save their son. Asked how most offenders arrested managed to get away with outside-the-law settlements, one of the supportive lawyers pointed to the excessive family support these men enjoyed:

Through their parents of course. You cannot imagine the extent to which parents are ready to go to get their boys out of trouble! They will beg, cry, threaten suicide, hire goons, go to local toughs, meet politicians, bribe the police – literally anything they will do to get their boy out. They will for sure go to the complainant's family and apply all sorts of pressure, offer threats and goodies, and so on. That's how they all get away. The police are very soft on them not just because they 'feel' for the extreme youth of these boys – legally they have no such discretionary power. But the fact is that these boys are jackpots. They allow police officers to get a lot of bribes! I have known families selling all their valuables to get their son off the hook.

And sadly enough, it also appears that such 'outside' settlement holds nothing positive for the victim. Lawyers interviewed shared many stories of how the family managed to get the police to summon the offender, seize his mobile phone and computer, threaten his family and friends severely, and make him erase the offensive content. However, this did not mean that the woman could return to her normal life; in many such incidents, the woman's education was discontinued or she had to change institutions to move back with her parents, or her mobility was heavily reduced, and in many cases, the woman was forced to agree to a marriage arranged in a hurry. Therefore the survey data that showed a nearly-even divide between women who said that they told their families/siblings/relatives when they faced online abuse and those who said that they did not – 49 and 51 per cent respectively – makes sense (Appendix-I, Table Q. 6.15).

While the family is perhaps the only institution to which the woman can turn in such a crisis, more than half hold back for fear. To the question why they did not approach their families, 54 of the 69 respondents to the question mentioned that they were worried that they would be blamed; 26 feared that their mobile phones would be confiscated (Appendix-I, Table Q. 6.16). The share of respondents who mentioned imposition of various restrictions by family differed across the sample: 25 per cent of SC students who responded; 17 per cent of SC students, 26 per cent of OBC students, and 12 per cent of General Category students. The possibility that the relative confidence of the last group may be related to their better access to law enforcement and justice mechanisms is perhaps a hypothesis future research might explore. No respondent mentioned physical violence – again, a silence that needs to be probed further.

However, a striking account was of a woman who started doing high-end sex work in secret for money, whose husband was sent a porn video of her. Her husband's family, interestingly, desisted from physical attacks, apparently fearing that she had more 'outside connections' than they thought and these could make the 'leaks' worse! The concern about the family name was such that the lawyer they approached "... sensed a fear in the relative that if they were too harsh on the woman she herself might share those images and shame their whole family!"

As for other guardians, especially college authorities, their record of response to GBCVAW is not just dismal, it is non-

existent. College authorities are equally reluctant to complain for fear of ‘bad name’ – and this is evidence for the extent to which institutions mandated with producing the liberal subject and the active citizen are in real terms still shaped by highly gendered and discriminatory familial discourses of honour. Distressingly, most of the students surveyed did not even know of the Internal Complaints Committee – a very large number of them asked for ‘friendly committees’ and ‘staff committees’ to deal with GBCVAW in colleges in their written answers to some survey questions, and in the experience-sharing without knowing of the possibility of the ICC! In the survey, 89 per cent of the respondents who answered the question whether they had gone to the college authorities to complain after being harassed online said that they did not (Appendix-I, Table Q. 6.8). Nearly 75 per cent of the respondents who answered the question why they had not approached college authorities chose responses that indicate a lack of faith in college authorities’ commitment, ability, and empathy in handling such cases (Appendix-II, CT 6.9*1.6).

All five lawyers interviewed were also members of various ICCs in the two districts we focused on, and they admitted that these are either non-existent or non-functional in even major colleges, and even in institutions in which they exist, the training offered to their members, and that they offer in the institution does not cover cyber violence. In many colleges, cellphones are banned and so women students cannot complain at all; in some places where ICCs exist the interpretation of its remit is limited to just the staff, quite against the spirit of the law. In the survey data, 57 percent of respondents said that they did not know if the ICC existed in the college; 13 per cent said it did not. Only 30 per cent said that it did exist (Appendix-I, Table Q. 7.2).

However from the account of a supportive lawyer, the conditions under which the ICC can act effectively against sexual and gender violence in colleges seemed evident. She shared her experience of working with the ICC in a government college which successfully punished a male teacher who was accused of abusing and leering at women students and punishing those who resisted his advances or contested his comments. She emphasized that one reason the ICC was able to move in this case was that this was a government college, and so the stifling misogyny normalized in private-management colleges run by Kerala’s powerful and unapologetically patriarchal caste-communities did not pose a hurdle here. Also the presence of feminist teachers seems to be important:

... the ICC found him guilty and the college authorities took prompt action, first suspending him and forbidding him to enter campus, and after the ICC report, recommending his dismissal to higher authorities. He’s gone to court but it is doubtful if he will win. In this case, the strong presence of feminist teachers on campus was an important factor. Most departments there, especially the arts and social science departments, have at least one young feminist teacher educated outside Kerala – with good PhDs – and some male feminist teachers too who are quite vocal. This is a campus that managed to organize a queer parade last year with teachers and students participating. But of course, this is an exception, and in private management colleges, there are often equally well-trained feminist teachers, male and female (more and more the case, because young people joining there are from politicised universities outside Kerala and young men are often refreshingly free of the blatant misogyny of men trained in Kerala), they cannot take a strong stand.

In sum it appears that wherever there exists a strong patriarchal sense of guardianship, women are less likely to receive justice in GBCV cases. No wonder, then, that a great many of the survey-respondents that in case of such experience, they would turn, first and foremost, to friends – and not to parents or teachers. From interviews with lawyers it is clear that school teachers play an important role in protecting schoolgirls from cyber violence, but once they become college students, students seek friends – especially tech-savvy friends -- to help them escape cyber-violence; survey-respondents ask for ‘friendly’ committees in colleges.

Strengthening friendship was recommended by many of those we interviewed, including police officers. But in the latter’s accounts, usually friendship was equated with benevolent surveillance by adults – vertical, not horizontal, in its inclination. How friendship networks may be used to strengthen women’s self-empowerment against GBCV is a question that we need to ponder more on.

Police Responses to GBCV

Most police officers interviewed meant to be sympathetic, but in a patriarchal-protectionist way (1) that is more sympathetic to women who fit the ‘good victim’ profile, especially teenagers and young women who look unexposed to the world (2) that prioritizes family crises over attacks on women in public debates, and (3) that viewed opinionated women with suspicion holding them at least partly responsible for their troubles.

This is widely confirmed in interviews with lawyers who supported victims. Particularly striking was the account of a lawyer who illustrated this with two cases she had handled, which drew opposing approaches from the police, despite the fact that both were POCSO cases. In one, the girl looked small for her age, meek, apologetic and ignorant of the world;

she belonged to a poor family led by her father who was a small shopkeeper; but the family was also supported by a major local political party. The victim in the other case was a girl who looked mature for her age, seemed more aware of the world and did not look apologetic, belonged to a middle-aged family with no men, appeared to have made sexual choices early. The lawyer notes that the police was highly sympathetic to the first, but terribly nasty to the second. In the first case, all five offenders were convicted and are in jail; in the second, only a partial victory could be won.

Related to this seems the sympathy for 'weak-looking women' that survivors noted. One of the survivors recalled how she came face-to-face with the mother of the man who had unleashed a terrible vilification campaign about her daughter online:

His mother began to weep and wail about her only son and the police melted like butter saying that he was young, please take pity on his mother, you will ruin his career and future. I asked the police if they did not feel sad for me because I was not weeping and wailing about my daughter. Shall I cry, I asked them openly, am I not suffering too, why is it just her?

Following the typology that emerged from the responses of female students (detailed earlier), police officers do admit that the police have not been able to contain 'nuisance', because the cyber-cell is overburdened. Officers assured us that this may be resolved soon. The Kerala Police has launched an ambitious training effort to train at least two or three officers in every police station to handle cyber-crime, and women officers are being trained to counsel women. In November 2018, the Kerala Police Training College was running a training programme in handling cybercrime for 550 women officers who were summoned from all over Kerala, and the college had also trained 500 male officers. However, accounts of some officers also seemed to indicate that the feeling that the cybercrime complaints are generally not serious is prevalent, and also justified using very patriarchal logic. Talking about the reluctance women officers allegedly showed in taking up the training programme, one of the officers claimed: "... see, in all police stations, everyone does everything ... so everyone is overburdened... and they have their families to take care of. Now as I told you, police don't find these cases serious enough ... so they think, why should we take on this in addition to the big burden we already carry? Isn't it better to devote that time to our families?"

In cases of 'harassment', officers often express frustration at the reluctance of complainants to pursue the case. They cited this as a key reason why police officers do not take complaints of cyber violence by women seriously – because after everything, a case will not be filed, and even if filed, the family will not cooperate in the investigation. A senior officer known for his success in pursuing cybercrime told us that it often took ten whole days' persuasion to get victims to complain, and that he often had to speak to not just the immediate family but to all people who may possibly 'lose face' because of the crime.

When it came to cases of 'outright violation', interestingly, there seems to be an understated priority granted to cyber harassment that could 'ruin families' or cases of child abuse, compared with cases of cyber bullying of women. Interestingly, the relatively conservative officers tended to claim that complaints about crime threatening family life were the more numerous among the GBCV complaints, while the relatively liberal officers felt that cyber bullying and cyber-stalking were more numerous. While the former highlighted the criminal as an outsider intruding into family space, the latter said that the criminal was most often known to the victim, even intimately. The more conservative officers even set up 'crimes against family' in total contrast to 'crimes of public women' in a rather ambiguous way: "But don't you think the former call for immediate attention? After all this is a patriarchal society and women's family lives will be ruined and they will be cast out? Surely all women in public life using the internet are not harassed? Only those who are too actively using?" He was saying that *only* some women who seek a public voice online are harassed – the 'active' ones (he clarified that he meant by 'active ones' those "women who attack others and use bad language") and so there was really no need to prioritize their protection; however, homebound women need more protection because they are by implication, more vulnerable.

These cases, they felt, required immediate attention, while cyber-bullying of women with opinions could be dealt with some self-discipline. Though they all mentioned this, what they meant by it differed slightly, ranging from women sticking to good language and not getting into furious debates, to more general notions of 'cyber discipline'. One of the senior officers currently in charge of some notorious cyber bullying cases, felt that women should use mild and polite language:

...but you see, there is a difference. Women cannot go to the extremes men do. Men can go to any extreme. Men can say, for instance, 'xxxk you' –. Can women say the same? It would be immodest and they will be shamed for that. So like the old adage goes, irrespective of whether the thorn falls on the leaf or the leaf falls on the thorn, the harm is to the leaf!

So when women react harshly – and remember the actress Parvathy [the actual word he used is cinema nati, which the female actors in Kerala have declared derogatory]. This reaction makes things

much worse. And women react ... I can't call them activist ... See, I advise women not to react but that advise is taken wrongly ... this NGOs ... they say that police is reinforcing discrimination ... why shouldn't women react they ask, why should they turn away ...

... see I do not mean it ... I have a wife and a daughter ... I know that Parvathy and other women have faced a lot of haunting ... really serious haunting ... there are nefarious interests behind it

... but in the end, it is their families that get destroyed ...

Interestingly enough this officer comes to the conclusion that if at all women who face cyber-attacks should receive any attention that is because these attacks may destroy their families! The other end of this range of patriarchal views is the notion of 'cyber-disciplining' advanced by a senior officer with long experience in handling cybercrime:

... we are still to learn what I call cyber discipline. That refers to the ability of the person to go to the cyber world with a pre-fixed purpose, use tech to complete it, then log out safe. Are you buying something on Amazon? Great – go there, buy, come back and log off. Don't browse. The very concept of browsing on the internet is dangerous and leads to harm. This is what I say when I go to colleges and other such places.

It is a matter of concern indeed that most officers interviewed view the mass attacks vocal women face online as something they could possibly control on their own through self-censoring. One of them even quipped that women trying to file cases against cyberbullies was one of the reasons why the police thought that cyber violence complaints by women were non-serious. The blame for the harm suffered was pinned on women in different ways. The senior police officer in charge of cyber cells claimed that women were not disadvantaged in any serious way online, and he justified this statement by pointing to the fact that there were female criminals online who were luring and duping even senior police officers. Nor did he feel that public education on internet democracy for women was necessary:

They should just come ... see, if you get a cold, you go to doctor, take the medicine he gives, you don't study medicine. See, I went to an ortho the other day ... a friend of mine ... he started explaining, I stopped him, said, don't tell me what went wrong, you just give me medicine, tell me what to do, and I will do it. So if they come and complain, we will do it all. You know that there are rules ... nothing to fear ... the victim's name is kept confidential ... but few people come.

Another claimed that there were furious and acrimonious fights ("wars") online between women themselves, and so the claim that vocal women needed protection was wrong. This officer felt that women who spent too much time on the internet asked for trouble, but "ordinary women" did not, because they stuck to their profiles, checked them, and came away safe. In sum, it is this: if you have agency more than what is allowed by patriarchal authorities, then you're asking for it. Our data however, does not support this impression. Our respondents said that out of their harassers, the large majority (76 percent) was male, while only 11 percent of the abusers included men and women. The share of female abusers was a mere .8 per cent (Appendix-I, TableQ.4.5). Whatever may be the 'wars' women are allegedly fighting online, they do not seem to be against other women, especially young college girls.

So it was hardly surprising that these officers tended to think that women's acts of resistance, especially collective acts, are offences. Citing an important case of mass bullying and harassment of a woman and her female friends by what seemed to be an organized gang of criminals who had been paid by someone, he characterised the effort of the woman's friends to hit back by creating fake profiles as a "gang war" in which both sides are equally guilty. He also felt that 'activists' were women led astray by too much of an emphasis on "teaching good touch – bad touch," and they tended to blame men too much – he mentioned the #MeToo as an example. We interviewed the survivor of this case and it appears that these were responses to police inaction on individual complaints by several women; finally, action began to be taken when the women jointly complained directly to the DGP of Kerala. Finally, it is worrying that most of the officers we spoke with felt that cyber harassers were 'weak', 'young fellows just acting blindly', or 'puny in real life' – that is, not really criminal, as though criminals always looked menacing offline.

Not surprisingly then, officers' understanding of what sections of the law could be applied fitted closely with their perception of the degree of seriousness that could be attributed to different kinds of GBCV. An SP interviewed was quite blatant: "There are three types of crimes against women," he said. "These are first, rape, for which section 376 applies. Then there is molestation, for which 354 is applied, then there is stalking and lewd gestures for which there is 509. To this, 67, and 67A of the IT Act can also be added." Because they generally feel that it is cases of 'outright violation' that deserve greater attention, officers recommend adding sections from both the IPC and the IT Act to strengthen the case: one of them felt that cases on the basis of just the IT Act are not taken seriously by courts; another felt that judges tended to be liberal with cyber evidence in cases in which sections from both the IPC and the

IT Act are involved. Generally, they feel that attacks on women are overwhelmingly sexual and so the provisions against 'outraging a woman's modesty' cannot be avoided. However, they do not always feel that sections against criminal intimidation (506 and 507), for example, are applicable in cases of cyber bullying of vocal women:

Wouldn't that be too much ... 506 ... you would have to make a personal complaint for that ... Actually, most of these fellows are just jumping on some bandwagon, or trying to crack a joke ... it ... is not that serious [studies the researcher's face for her response] ... many are really young fellows doing foolish things. If the comments are sexual, then it can be handled but that doesn't need us to apply 506.

[Officer, DYSP rank]

But those provisions wouldn't stand in court ... I mean, you'd have to show that her reputation was irreparably damaged ... i.e. her character was damaged ... socially ... and as for 507, you'd have to prove in court that she could actually not perform her normal work etc after the criminal intimidation ... so the other provisions, i.e. 67A or 354 etc are preferred. It would be criminal intimidation only if it prevented the woman from doing her normal activities, right?

[Officer, ASI rank]

Some senior officers, however, agreed that these provisions and others could well be applied, and attributed the general neglect of these in average police stations to ignorance. Lawyers, however, pointed out that the prejudices held by many police officers were as important as their ignorance, and they spoke from their practical experience of engaging with them:

The most neglected cases are those of cyber bullying – it is true that the provisions to do with criminal intimidation and hate speech may well apply, but the police do not know for the most, and even when they do, they don't want to take up work they think is 'unnecessary' and mostly just some minor squabble ... If you start with the impression that the complaint is not serious or that the woman brought it upon herself, or that you are allowed to prioritize cases according to the seriousness you attribute to it, then it is quite possible that you don't think well enough.

[Feminist lawyer, based in Thrissur]

The police develop all sorts of doubts -- like for example, they ask how trolling can be criminal intimidation since the woman is continuing to have a normal life! Now, a woman who has been severely trolled cannot just freeze! She has to go on living, and somehow stay normal, right? But the police often insist that they need more proof that an atmosphere of fear has been created under which the woman cannot simply function normally. You have to prove the fear.

[Lawyer, based in Thiruvananthapuram]

However, all lawyers interviewed felt that unless the section of the IT Act were not combined with sections from IPC, the cases were not likely to be taken seriously in court.

What was truly worrying however was the fact that all four survivors interviewed could not recall what provisions were applied in their cases, and this included one survivor who is actively pursuing her case still. None of them had a copy of the FIR; they did not recall receiving one despite the fact that all these crimes had happened just a few years back or in the recent present. In fact, it was traumatizing for them to recall those times – and it seemed to have wiped off primarily the fine details of the legal case from their minds. But none of the survivors exited social media, nor did they step away from public life. One of them said that she felt overwhelmed emotionally, but pursuing the case helped her to hold on. However, the above fact – the loss of memory -- indicates that the trauma perhaps needs to be addressed more openly.

Women student respondents as well as the male and female students who took part in the survey and the FGDs were nearly-totally-ignorant of the niceties of cyberlaw, though they knew that it existed. Most had not heard of even the controversies that had received much public attention, for example, of the striking down of the section 66A of the IT Act. In the survey data, most people felt that there are a few laws now that are adequate, but they are not properly used (39 percent); another 18 percent felt that these are a few laws, but they are not enough. Over 20 percent felt that the laws are old and could not be applied, or that they did not know about cyber law (Appendix Table Q 7.1).

The common demand raised to us in all five colleges visited for the survey and the institutions where FGDs were conducted was for training about cyber laws.

Challenges in Law-Enforcement

Training

Almost everyone approached for this research felt that cybercrime being relatively new, the police needed training that would not only endow them with the necessary skills to identify and secure cyber evidence properly, but also orient them towards a world in which no one, of any gender, can possibly avoid the internet. The following elements were found necessary in responses to the question about the training that would be adequate to the challenges of the present.

- Senior police officers felt that it was necessary to equip officers with the technical skills to identify and secure evidence. The inability to do this was being noticed by the judiciary, and efforts were on to rectify this. The urgency for such training was driven not just by the need to tackle GBCV but also the fact that all crime now has more often than not, a cyber angle. One of the officers felt that the duration and intensity of such trainings should be perhaps increased. The Kerala Police was one of the first forces that the CDAC trained in India, and the technical training programmes were commended by all officers and lawyers interviewed. Officers felt that widespread technical knowledge among SHOs and others could release the specialized cyber police units to deal with technologically-sophisticated crimes. Almost all senior officers interviewed affirmed that it was important to keep updating through training because of the technological sophistication of cyber criminals in general.
- These officers also felt that police officers should be trained to help complainants, particularly younger victims of GBCV, to persuade them to file formal cases. They perceived a clear gender division among the recipients of the training – men to take the technical training, and women, the handling of victims and counseling. On greater probing, some officers said that this was because women officers were not often senior enough (one said that they were burdened with domestic responsibilities besides their official duties!). From news reports in recent years, it seems true¹⁵ that women were fewer in the police force. Also, they were relatively rare at higher levels.¹⁶
- Some senior officers found most officers lacking in their knowledge of the law – they attributed the failure to file cases and delays to it. They also felt that sections against outraging women's modesty were overused because officers were not sure what others could be used when complainants were women.
- A lawyer with experience in teaching the IPC to new police recruits in the Police Academy suggested that the training of police officers in general and on handling cyber violence in general needs to be conducted with the active support of feminist experts in the field. She felt that her role as trainer of police cadets did make a difference in the patriarchal mindsets they had arrived with. This seems to be lacking at present. One of the officers interviewed, who was part of the training team at the Police Training College, admitted that the ongoing training was mostly by men, and in-house. He dismissed the suggestion that more women should be trainers thus: "...[laughs] because cybercrime is not just women being attacked by men ... I have handled cases in which men have stalked men ... and women have made fake profiles of other women." The lawyer was sceptic about the training making a difference to women police: "... it is mostly [male] officers who do their training, and so it is their 'wisdom' that gets passed on. I have no hope that there will even be a dent in the current misogyny; it will continue to be the same confused misogyny laced with select words, phrases, and ideas from 'gender empowerment' talk." There is reason to believe her – it was one of the most conservative officers we interviewed – whose account was laced with choicest sexist proverbs in Malayalam – who was handling the sessions on cybercrimes against women and children in the women officers' training that was on at the time of interviewing.

Facilitating Ease of Approach

Lawyers interviewed stressed that while the ignorance and prejudice of officers was an issue, equally important was the real difficulties victims faced in approach the justice system, which, they insisted, must be viewed apart from, and treated separately from, their fears, rational or irrational. Most of them agreed that though the cyber-cell could now receive complaints online, few women who complained knew how to file a proper complaint. And the police acted quickly when the complainant had someone to accede on her behalf – a political party, an influential member of the police force, and so on. Even these were not guaranteed to yield results. A number of student respondents said that their complaints to the cyber cell were futile. A police officer interviewed responded to this saying that the complaints

were too numerous for the present cyber-cell set-up to handle, and most often, they were weak. When asked to clarify he agreed that by 'weak' he actually meant 'poorly drafted'.

Women students admitted overwhelmingly that their knowledge of the correct mode of filing complaints was decidedly weak – and male students fared no better. "Part of the reason is that the advice that the police offers about cyber safety in public sounds so restrictive," an activist remarked, "it is a definite disincentive to learn more about safety." She was referring to a call issued by the Kerala Police to young people¹⁷ in which they were warned of serious dangers online, and among the different measures recommended for their safety, prominent ones included the advice that girls should not take selfies with boys, that they should be prevented from uploading their images in social media, that guardians should check their bags and cupboards secretly, and that all doors leading outside should be locked at night and the keys should be with the guardians. Available publications on online safety in Malayalam too tend to overemphasize the risks of going online for women by using stories of how perfectly good, innocent girls who had never dreamt of defying their parents and teachers were ruined just because of the internet, or because they were led astray there (for example, Menon 2017). Perhaps, then, the first step towards facilitating ease of approach towards institutions of justice is the adoption of a non-judgmental attitude that relies on building trust rather than instituting more and more surveillance (the above report seems to indicate that the reverse is happening – surveillance seems to be getting closer to incarceration).

But even if this hurdle were overcome, the real hurdle lies in the facelessness of the institutions of justice – and the unending bureaucratic maze that victims dread. One of the survivors who cooperated closely with the police told us in detail how they had to go from officer to officer to speed up the investigation, and how a whole year was lost in just helping the police to gather enough evidence. A lawyer interviewed mentioned the heartache and delay this entailed as the chief reason why she encouraged in some cases out of court settlements with a hefty monetary compensation to the aggrieved woman. By the time the court can attend to her case, the woman is a wreck psychologically, and often financially, she said. She articulates powerfully:

The whole idea that women bring it upon themselves, or that the police are not obliged to serve a woman who may not look like the paragon of feminine virtue is deep-rooted. In most instances, cases would not be filed at all. They would simply tell the woman that there is no evidence. And if they do, they will say, we have sent it to the cyber cell. If they then go to the cyber cell to find out, they will tell them that the cyber police are not obliged to reveal anything to you and that they are obliged only to send materials to the investigating officer. So you end up waiting, waiting at the doorstep of the cyber-cell like serfs in the court of a feudal lord! Then if you try approaching the investigating officer, you may or may not receive some respite.

But remember, from the moment the investigation starts, the officer is in close touch with the suspects – who therefore have enough opportunity to approach the officer indirectly, make offers, plead, exert political or other influence on him! In contrast, the victim has nothing. In court, the prosecutor is not the victim's lawyer, but the police's lawyer. In so many cases, the police collude with the suspect and make the charge sheet advantageous to him.

In contrast, the defendant's lawyer is well paid and has prepared well – I do think that the prosecutor's post should also be filled through open competitive exams instead of the present way of stuffing it with favourites of the reigning political party! Only then will women who have no political connections get some attention from them.

Sometimes officers even advise the accused to file a petition in the HC to quash the case assuring him that they will say that there is no credible evidence! This is most possible when it comes to cybercrime against women! So you see, this is why few women want to fight any case, and especially a case of cyber harassment. They all want to negotiate and settle. If we do not have a victim-centred jurisprudence in this, no change may be expected.

One of the police officers admitted to this when he argued for the importance of training women officers to deal with cybercrime even though they are not powerful in the system: "Well, even if they can't initiate cases, they will be able to counsel the complainant sensibly. Like, even if this police station won't take it, ask them to approach a Women's Police Station, and even if they don't respond, take it to the higher authorities, right up to the DGP ... show them the route. Instead of not talking with them at all." However, a junior officer with considerable experience in the cyber cell noted that some adjustments could possibly make a difference. He felt that the process of filing a case, investigation, and so on could be sped up: "For example now a police officer can file a case in an ordinary police station with just a counter signature from the SHO. Likewise, there should be an arrangement in cyber stations too so that junior officers can file a case." He also felt that if the anxiety that overwhelms complainants could be successfully addressed, the hassles may also be less daunting: "As for hassle, all government procedure involves some hassle, and in these cases this is perhaps

felt in an exaggerated way because people are so scared of the details leaking out.”

Lastly, a senior police officer claimed that the very technical nature of cybercrime made its investigation time-consuming, and comparisons with, say, the USA, were not valid simply because the legal systems are so different. The status of confession by the accused, for instance, was very different in the Indian system:

Firstly, encryption levels are really high. Only after the device is confiscated can the police really figure out what action to take next. There are instances in which the device can be unlocked only with the help of the accused. This puts pressure on the law enforcement officer in having to figure out ways by which the accused would confess the crime. In the US, the DA can offer a plea deal to extract a confession, promising a lesser sentence. Here, in contrast, nothing that you confess has validity.

Overcoming the Limitations of the Law

Almost all officers and most lawyers interviewed agreed that the striking down of Section 66A of the IT Act and Section 118D of the Kerala Police Act was a great disadvantage in dealing with cyber bullying of women. A senior officer was blunt: Now you have to look, is there a sexual aspect, is there obscenity? If so, evoke the relevant sections, if not apologize and tell people, the chances of justice are slim.” Lawyers who said so also said that they had initially supported the striking down of that frequently-misused section of the IT Act but now regret that it was struck down, not reworked in favour against the powerful and in favour of the powerless. A senior officer, relatively liberal, said this about 66A: “True, it was misused by politicians against young people, but then instead of abolishing it the Court could have simply defined the word ‘offensive’ more closely. The trouble was that such a definition did not exist and anyone could claim that they were offended – say, for example, by a set of good-morning messages received at work. Actual defamation became harder to tackle now. I also think that hate crimes could have been dealt with better with 66A.” A lawyer based in Thiruvananthapuram who has handled several cyber bullying cases filed by women student activists of a prominent left party too insisted that the 66A should have been thus revised:

Women are reluctant to complain because the process is so long winded. In such cases, justice has to be quick, otherwise it is useless. Secondly, you need to be assured that the other party will get at least two or three days in jail! Unfortunately, women and younger women especially, lack real support from their families and even friends’ circles. They come only when things get murkier and murkier and when they have no other option at all. By which time they would have lost all the money they may had – i.e. suffered irreparable loss. This is true for non-cyber cases at all. Now, defamation. When 66 A was existent, you could have speedier justice. But now that it is gone, a personal complaint is necessary and by the time everything is over everyone would have moved on. How long would one want to spend going in and out of courts, especially when you are not assured of justice?

Secondly, both officers and lawyers spoke of the lack of good laws against hate speech, and the neglect of gender in sections like 153A (against incitement of communal violence), 505 (against public mischief), or 295A (against insult of religion and other identities). Correcting these would make a difference, they felt, as also an effort to interpret certain sections contextually. Speaking about the massive misogynistcyber-attacks on vocal women in communal terms in the context of the controversy around women’s entry into the Sabarimala temple in Kerala which was permitted by the Supreme Court in 2018, when it lifted a ‘customary’ ban on women there, a police officer remarked that 153A should be contextually interpreted and applied in complaints.

All interviewees agreed that a separate law to tackle GBCV would be immensely useful. Police officers and lawyers felt that this would make it more visible and training all stakeholders about it would be far easier. Another compelling reason was advanced by a lawyer who pointed to the significance of the Juvenile Justice Act and the POCSO in bringing the issue of children’s rights to the fore, and making the police far more alert. Sexual violence against children now elicits quick response from the law, and she felt that part of the reason for it was that there were laws specific to it. She felt that this was particularly of significance for Kerala:

Kerala is a society in which mobile use and internet use are very high, and because of high female literacy, female users are also more. Young female users are probably much more than elsewhere because young women in Kerala are all in schools and colleges. If the figures that you mentioned earlier of GBCV complaints for 2012 – i.e. 50000 – are correct, even if a portion of it were just reporting the loss of mobile phones etc, how much more they would be now, that social media is almost everywhere? So maybe Kerala needs such a law urgently. Only then will police officers take this offence seriously. And yes, it will also make training much, much easier since you then have to teach police officers just this law, comprehensively.

Importantly, senior police officers point out that there are many loopholes in the law that may act against the complainant if not plugged. One of them pointed out thus:

...For example, technically speaking, the act of transmitting a compromised image is considered to be an offence. This also means that the compromised image sent by the victim can also be construed as an offence. So far, this strand has not been taken up by the defense counsel. The police in most cases play down this part to show their support for the victim in getting the grievance redressed. Also, according to clause 65 B of Evidence Act whichever computer has been used during the transfer or accessing the image should be in a working condition and should belong rightfully to the owner. A certificate is required to back-up the claims. This again puts pressure on the law enforcement officer. So if I borrow someone else's laptop to do some mischief, I may escape. Worse, if there is no "real" victim who would come forward and file a complaint, no action can be taken against the accused.

He specifically mentioned an effort to nab online child sex predators, in which 101 identified were Indian, and 13 of them Malayali, but: "Even if we are able to identify who these people are, still we can't do anything because in Indian law, there is no provision for initiating criminal proceedings against them."

Securing Evidence

All police officers and lawyers interviewed that the securing evidence was the most crucial part of the investigation. Police officers felt that while there was still much improvement to be made in spreading awareness of preserving evidence among the complainants, there was far greater awareness of this now in the general public. For example, a senior officer pointed out that more women now knew well that live URLs had to be preserved. In the experience-sharing part of our survey, this was quite evident, and also, the many young women were no longer naive when it came to uninvited gifts – a young woman told us about how she had shared a status online that she was wishing for a teddy bear, and then, the next day, received one by courier. She said that far from making her happy, it alerted her to the fact that she was being stalked and so she took action.

However, all interviewees agreed that there was a long way to go till the police learned to handle cyber evidence properly. Since this is still an emerging area, there is not much uniformity in the demands made by courts, but the standards are not low. Recently, the Kerala High Court made adverse remarks about the Kerala's Police's handling of evidence in a case of GBCV.¹⁸ An officer with long experience in the cyber cell said that the likelihood of being less exacting with cyber evidence was more in the Human Rights Commission or Women's Commission where the chances of a direct settlement between the two parties was more of a possibility, but in court, that was rare. However, still, what evidence is accepted and rejected by judges is highly subjective:

Yes, now if the court deems fit it can take into account electronic evidence that is not certified also ... but more often than not, certification is required. The court has to decide, and different judges take different stand. Now for example, I just went to Kollam to participate in the trial of a man who murdered his wife ... In court his lawyer insisted that the evidence collected by the police and produced was inadmissible, and that I could not be evaluating it since I could not be considered 'a responsible person fit to certify'. The judge however asked me about my training and the responsibilities I had handled in my career and struck down the objections... But this is not always the case ... other judges could think otherwise. The reasons different judges for accepting or rejecting digital evidence can be highly subjective.

The police officer who played a key role in setting up a Standard Operating Procedure (SOP) for Kerala admitted that though this was in operation, there was much to be desired in officer's compliance with it. At present, only officers who have a special interest in the case seem to be following it carefully. He pointed out that the High Court's adverse remarks could have been avoided had investigating officers followed it properly.

However, the hurdles of securing evidence in GBCV are huge – as a police officer reminded, criminals have no boundaries, but the law is restricted by its jurisdiction. Some of the lawyers pointed out the Malayali women were particularly vulnerable to crimes committed from abroad since a very large number of men work abroad. One them recounted how one of her clients was harassed regularly by her ex-fiancé, using SIM cards obtained from Gulf countries. Men's friends' networks allow them to get these regularly topped-up from there. Many of the worst cyber bullies are located in the Gulf and many are technically-trained and so know how to erase evidence and escape the law. Some officers pointed out that trafficking in women was hard to tackle because of two reasons: one, it was often with the consent of women who actively colluded in destroying evidence, and two, the perpetrators were often tech-savvy and knew how to throw police off-track. They described how certain child porn rackets could be broken into only with the help of hackers – despite the fact that tackling child porn is much easier now.

A senior police officer who was in charge of the cyber cells told us in the past four or five months, the Kerala Police had successfully handled seven or eight cases of which many involved men living abroad. He observed:

There were even instances where the accused were abroad and then the police had to wait patiently until they

returned to India. This waiting was considered to be traumatic for the victim who was subjected to more harassment over the course of this time. It was one of those uncanny situations where the police knew that the victim was being harassed, but their hands were tied and had to wait till the accused was in India to proceed with filing charges against them. The perpetrator had to be constantly tracked – and he tried to evade us by landing in Bangalore but we nabbed him.

All officers explained in detail the immense difficulty in securing evidence across national borders. It is time that law enforcement systems were brought up to the challenges of crime across borders, argued a senior officer who has been part of national bodies dealing with cybercrime:

Getting Letters of Rogatory is a long-winded cumbersome process. It has to go via the Chief Judicial Magistrate, to the Consulate; everything has to be translated into English and 7 copies made ...the exact information/evidence required has to be mentioned clearly. If there are treaties of mutual assistance, then it is another route. If the Consulate agrees to help then the LoR and all other relevant documents have to be translated into the language of that country. All this may not help in the end either and we may not receive what we need on time. If the police there arrest the culprit, there are still further delays for we will have to go there, secure the culprit, and bring the culprit back here.

The following suggestions emerged in the discussion about resolving this difficulty:

1. Amend the Criminal Procedure Code to make the process easier and use technology to avoid long-winded delays in making documents, translating them, and do on.
2. Use technology, for example video conferencing over Skype etc. to interrogate suspects; this is already used to examine witnesses in courts.
3. Newer, easier channels should be open so that countries can collaborate to solve and reduce cybercrime, similar to those which exist in the EU. This could be done through international organizations like the UN.
4. Every country now has a nodal agency to ensure national cyber security (in India the Indian Cyber Emergency Response Team). It is possible to link such teams that exist in different countries to ease the transfer of evidence and facilitate other aspects of the investigation. This of course needs an international initiative.

A further hurdle lies in the fact that the social media and digital publication exceed national jurisdictions and the cooperation of service-providers is inevitable. Speaking of the cyber harassment faced by the CEO of a media outlet in Kerala, and admitting that nothing could be done to help her, a senior officer concluded:

To initiate investigation [against cyber portals that do not have an identifiable editor and published from outside India] such publishers, you need details of the printer and the editor for filing the FIR. Most of these portals operate with the help of stringers and have no office space in India to which correspondence can be sent. Even if you manage to find the publisher, the limitations of the dual criminality law would require the countries concerned to have similar legal measures that consider this to be a crime.

As for Facebook, WhatsApp, and so on, all interviewees agreed that Facebook responses to requests related to child porn, terror, and financial fraud are very quick, answered in a few days. An officer experienced in dealing with cases in the cyber cell said that for Gmail and Twitter, the response time was about a week or ten days, depending on where the server is. If in India, a week or so, but if abroad, about two weeks. He pointed out that Telegram does not help at all and so in the sensational child porn case that the Kerala Police had solved, they had to take the help of tech-activists who manipulated the group admins to reveal vital information. Facebook is where women face a lot of bullying, said a senior officer, and there, western ethnocentrism is a major issue:

For example of the term “machi,” which when translated was “infertile woman” lacks the insulting tone it has in Malayalam, and so Facebook refused to consider this as an offence. The question is how to convince a corporate giant like Facebook that certain words or references when used in localized contexts are offensive and has to be accounted for when they finalize the community standards. They kept asking how can infertile be an offending term!

Police officers also pointed to the serious lacks in the police's capability to analyse evidence quickly. The junior officer experienced in cyber cell cases pointed out the relying on the CDAC was time-consuming and expensive, not to speak of the bureaucratic delays in government payments to CDAC. He identified this as the chief reason why child porn cases filed in 2015 are still dragging. Given bureaucratic delays, updating technology is a challenge, as the senior-most police official who is in charge of police cyber cells admitted:

To convince the government about the need for the most updated technology is a major hurdle. There is a significant time lost between putting in the proposal and getting funds sanctioned for it. The govt allows a simple

process only for the most basic equipment; we need much more. That takes too much time and by the time we get sanction, the manufacturers have moved up and changed specifications. In that sense, the police are always 'chasing'!!

... The Forensics Lab is facing such a crisis – for example, we finally got a tender approval for new equipment and got a quote for 60 lakhs. But by the time approval was secured, rupee value fell to 70 ! Now the supplier could not supply at the original amount! By the way, cybercriminals are always ahead of us!!

From our survey data it is amply clear that students rarely try to approach SIM card and App providers, mainly because they did not know that such an option existed (83 of 101 respondents) and further, were not sure they would help (49 of 101) and also because they did not know how to approach the SIM card or App provider (26 of 101) (Appendix-I, Table Q.6.13). Among the few who approached (24), 10 approached Facebook, (Appendix-I, Table Q.6.12) and it appears that Facebook did respond in four cases (Appendix-I, Table Q.6.14(b)). The importance of making students aware of the reporting and complaint mechanisms on social media, instead of just imparting them restrictive safety lessons, cannot be stressed enough. This also seems crucial to building confidence which later could be the basis of broader women-led campaigns for equal and safe presence on social media; protectionist safety lessons, in contrast, not only reinforce gender stereotypes and gendered fears, they also tend to individualize the issues and prompt withdrawal from claiming rights.

Better Reporting

The reporting of GBCV seems to be a decidedly-low-priority issue among the police officers interviewed and even among the supportive lawyers. The officers felt that this was not an issue they could do anything about; the Crime Record Bureaus handled it. However, some officers recognized the need for a change of typology. As one of the officers noted, sexual crime against women may be recorded separately, under separate sections dealing with 'outraging a woman's modesty' but it will not be added to the cybercrime head to avoid double-counting. Instead, he suggests that the pro forma for reporting crimes against women be divided into cyber and non-cyber so that we get a clear picture of both. However, an officer of DySP rank claimed that such changes are not necessary until and unless women start filing cases of such violence more frequently. About CCTNS, most officers felt that it was not relevant to investigating GBCV. None of the lawyers interviewed mentioned it.

Conclusions

I

Even as this research was being done, young men continue to taunt young women with mass insults, especially when they retaliate online. In a recent incident, a few young Muslim women college students who were attending the wedding of their friend in a rural area in north Kerala were moral policed by a local gang of young men. The women retaliated by making a video narrating their experience, but which also derided the place as medieval and utterly backward. The backlash was appalling – the men hit back with extremely derogatory counter-videos, a case was slapped on the women for 'insulting the place' and a male mob formed against them online and offline. While some of the young women approached the police with a complaint about the insulting videos, some apparently were intimidated enough to admit their 'mistake' and beg others not to share it tearfully. Marriage proposals which were firming up for some of them have been withdrawn apparently, because of their act! According to a news report, all of the village came down to the police station, and the SI tried to mediate. The police have however, charged a case on the offending men and the sections applied relate to unlawful gathering, rioting and criminal intimidation.

The way in which the incident has played out confirms the insights from this research on the peculiarly-gendered nature of Malayali cyberspace. It reveals that the boundary of online and offline world has shrunk thin even in Kerala's most-rural areas; that men are well-networked online in homosocial groups and moral policing young women is part of their toxic macho self-assertion; that women are more able to act online as a collective rather than alone; that women who try to assert themselves online do face serious offline losses, in this case, the loss of marriage prospects (and probably the censure of guardians), even when the police act. Interestingly, one of the news reports claims that the women asked the local Sub-Inspector of police to summon the man who had made the derogatory voice clip and declare that it was not of them.

It is heartening that the police did act against the offenders and use the IPC sections dealing with criminal intimidation, but it is hard to miss that the complainants' self-presentation seems closer to the 'innocent, playful, young woman who made a mistake'-image, which we found the police sympathetic to. However, the wide support they received they received that cut across political persuasions, and the equal condemnation of these young men

probably played an important role in formalizing the complaint and avoiding an out-of-court settlement. After indignant protests on social media, six men were finally arrested. For a change however, sections of the IPC dealing with criminal intimidation, unlawful assembly, and rioting were charged, and though the crime involved a clear cyber component, no section of the IT Act has been used.

We have faced methodological challenges, for example, of collecting usable and reliable survey data, and of its small size (indeed, finding an adequate sample for a population of this nature is not easy). However, this mixed-methods research uses the survey as a starting point to frame the key questions to be investigated in qualitative research based on semi-structured interviews. The survey itself was turned into experience-sharing sessions and this must have improved the quality of survey data as well. However, this research, opens up a number of questions for further research, policy, and civil social intervention.

First, it seems beyond question to us that GBCV is indeed widespread and it causes serious, if often, unnoticed, harm to young women, results in loss of mobility, confidence, social standing, and voice; it can lead to curtailment of ongoing education and work as well as loss of future opportunities; it can lead to physical punishment of these women offline and also to their bodily harm and loss of health. In other words, the widespread idea that GBCV, especially that suffered by vocal women online, is trivial and easily eradicable through exiting the internet is simply wrong.

Secondly, as argued in the first chapter, social media often forms a space which users' anonymity makes women all the more vulnerable to men who know them closely, in family and intimate circles, such that they may not be able to react immediately against them perceiving a violation of moral kin obligations (that their kin status would need them to keep). Indeed, they may actually be also rendered more powerless when they discover their harassers to be men known, close, or related – as by then, the violence may have been done and social hierarchies may hamper them all the more.

Thirdly, while social media has become indispensable in present-day social life, and networked publics have become integral to Indian democracy, their logic is of capitalism burgeoning through the clicks enabled by the individual. This seems to have implications for users' perception of service providers – most of the survey respondents and women interviewed, with important exceptions, have a very dim, unclear view on the nature of service providers and their obligations to users. While most of them were clear about the role of law enforcement and the judiciary, a large number were not aware that the SIM card providers and App providers could be approached in case of cyber violence. An interesting observation made by an activist interviewed was that while users tend to view social media as akin to public space – in that it was shared and any violation of rights was to be referred to the police and courts, even the more experienced among them often did not see that the social media companies profited from every click and hence had the responsibility to respond sympathetically to the victim when an acceleration of clicks that were essentially criminal, as for example in instances of mass cyber-attacks and targeted bullying, violated them. Perhaps this brings out the importance of introducing cyberspace in trainings and educational literature on the internet as not just a digital public, but also a new capitalist space, and stressing the point that capital which profits from clicks (which are indeed the labour on which social media thrives, as pointed out by Kane Faucher 2018) needs to be held equally responsible for preventing violence. In other words, the user is not merely a consumer of social media but also, simultaneously, a producer, a worker, whose clicks generate profit and this fact needs to be highlighted in trainings about safe social media use. However, these platforms need to be accountable not merely because users contribute labour to them – rather, it is vital that the data economy that drives them has to be fair and just.

Fourthly, the literature on gender and cyberspace clearly indicates that these vulnerabilities faced by women in the Indian/Malayali cyberspaces are actually a global phenomenon. For instance, Kyong Chun and Friedland (2015) argue that the instinctive attempt to make networks more safe by imposing all sorts of restrictions, trying to make one's presence more bounded, is actually to put oneself at greater risk – and therefore, all the attempts of guardians to manage their wards' online crises through settlements outside the legal system may actually be increasing the risk. In our research we also see that GBCV victims are not spared of heinous material and psychological losses just because such settlements are arrived at, and that is because they are agreed to primarily in the interest of the woman's family, and hardly for her sake. This makes the open, courageous, and just intervention of the law to end and prevent GBCV inevitable.

Fifthly, we see from our interviews, interactions, and conversations for this research that women's familiarity with and access to cyberspaces are valued by both patriarchal guardians and young women, if for quite different reasons. In a way, this only reveals how closely intertwined online and offline spaces are today, and how that boundary is becoming ever-more porous. If so, then there is every reason to reject the advice which we found so commonly offered to women by their guardians – parents, male relatives, male siblings, educational authorities, boyfriends – as well as law enforcers, that women minimize their presence online and practice modesty and feminine grace there.

Besides, our FGDs and interactions with survey respondents make it clear that women look to this space for self-building opportunities denied to them outside. For transwomen, this significance is all the more. If the trajectory ahead is thus, then there is every reason to demand full and equal presence for people of all genders in this emergent space.

For these reasons, we argue that law enforcers and judicial authorities should pay urgent and sufficient attention to tackling GBCV, and setting up adequate institutional structures to deal with them.

However, it seems clear enough that several hurdles lie in the path of realizing this demand. The first set of hurdles relate to the features of patriarchy in contemporary Kerala in which women are valued primarily for the social upward mobility they may bring to their families through intra-caste hypergamy: families are obsessed with their sexual purity even as they acknowledge that women need internet skills and familiarity in order to be marriageable. These regressive concerns permeate educational institutions which are expected to shape liberal selves and active citizens and therefore colleges are deeply gendered and gendering spaces. The second set relates to contemporary youth cultures which promote toxic masculinities which flow through and thrive upon homosocial online spaces. Our research shows that these are spaces which ruthlessly and relentlessly project women as nothing beyond objects of consumption and serve to reinforce patriarchal surveillance on women in public space, online and offline. Young men appear to be far better networked and tech-savvy than women and men who dissent from this culture are subjected to gender-insults and exclusion; women however remain largely trapped in individual spaces. The third set of obstacles lie in law-enforcement which seems to have internalized these patriarchal understandings of women's place online and offline. A fourth set, perhaps, is in the typology – or phases – of GBCV—that seems to be internalized by our survey respondents and the police. The latter however seem to believe that the three types/phases are perceived to be in an ascending order of harm. But it seems to us that each of these types/phases is equally violative, and need to be tackled with equal seriousness, if not in the same ways (a view seemingly shared by our survey respondents and FGD participants). Nevertheless, the research also throws some light on the strategies that women use to counter patriarchal surveillance and control, but these seem more available to privileged women than others.

II

This research also indicates that besides the pervasiveness of patriarchal attitudes across state, civil society, and family, inadequacies in the law, unpreparedness of officers, difficulties in securing evidence, the very unapproachability of the institutions of law enforcement and justice, and the very nature of the social media which thrives on 'more clicks, no matter how'. Police authorities seem infected with great patriarchal prejudice, but they also lack the knowledge – legal, technical, and human – to deal effectively with GBCV. But even the views of those among our interviewees who seemed to be better informed were always framed by at best a paternalist and protectionist concern about women's safety. An important suggestion offered as a solution refers to the need for an equal and open collaboration between law enforcement agencies and anti-patriarchal civil society – that feminist experts be involved closely in all aspects of training. Kerala Police is not alien to such collaborations (for example, their effort to set up community policing. Whether successful or not, it is an effort to connect with civil society of a certain sort) and perhaps this collaboration around tackling GBCV could be formalized as well.

As for the law, there seems much to do: plug loopholes that may lead to the further victimization of the injured woman, expand sections of the IPC to include gender as a category so that cyber trolling, cyber bullying and other mass attacks on women active online can be effectively dealt with. Many police officers and lawyers we interviewed regret the striking down of 66A, though they agreed that it was widely misused. How the humiliation and loss of face women suffer online can be dealt with without the harms enabled by 66A may be a key question for debate. All interviewed agreed that a comprehensive law to deal with all aspects of GBCV is a need – in the interests of making the crime visible, establishing its pervasiveness, acknowledging its harm, and ensuring smooth and easier training of police and judicial officers.

Police officers are also hampered by the fact that cybercrime from across national borders remain very difficult to tackle. This is all the more a problem for Malayali society, with a large population of men working in the Gulf countries and elsewhere. Police officers suggested ways of linking across national borders to solve and prevent cybercrime, using technology to bridge distances and cross borders in interrogation of suspects, and reducing the complication of bureaucratic procedure needed to make requests for evidence elsewhere.

The real challenge, however, is obtaining evidence from intermediaries like Facebook, WhatsApp, Gmail and so on, who are not bound by Indian law and have highly western-centred 'community standards'. This actually brings into sharp relief the significance of campaigns like #ForabetterFB initiated by women users. Police officers also offered some suggestions for better reporting of GBCV – while this did not emerge as a major concern in our interviews with

lawyers who supported survivors, it is of vital significance for meaningful civil social activism and advocacy for gender-just and gender-friendly policy on GBCV.

III

There are other indications, however vague, that for Malayali society in particular, cyber space may hold new democratic potential. An interesting observation about our interviewees and survey respondents, including police officers, is that not a single one of them suggested linking social media accounts to already-existent surveillance systems like Aadhaar. This is particularly curious because as a society quite used to the governmental gaze and widely identifying such gaze with welfarist and not security, concerns, and given that Aadhaar registration is very high in Kerala. While more research is necessary to establish it, this allows us perhaps to hypothesize that the use of social media in Kerala is implicitly understood as clearly separate from state surveillance. The implications of this should be thought through carefully.

For activist civil society, this research offers many pointers to consider. First, it brings to light all the more the importance of collective response. Collective intervention by women users of the social media marked the early days of cyberfeminism in the Malayali digital public, and it needs further extension. Collective action by young women students appears to have not only been more effective in bringing the attention of police to their complaints, they seem to have also built confidence. Now we see young women in groups making critical statements through online videos and Facebook lives against moral policing. This is a trend that needs to be nurtured and supported -- of women seeking not just an individually-crafted internet persona, but seeking a collective voice and face. Online security, then, could be understood not as increasing technical manipulation and control that claims to prevent 'leaks' but the determination to protect each other online, especially in the social media.

Secondly, several of our survey respondents and interviewees emphasized the importance of friendship and friendliness in alleviating the harms of GBCV and preventing it. A feminist lawyer observed that there was a whole new generation of determined young women in social media but they need to be offered friendship and trust by more empowered women, particularly senior feminists. Recounting her experience of empowering a young woman to complain against the vicious attacks she suffered which would have destroyed her career, and of successfully fighting her case, she said: "It is important to see that she and I knew each other since some years, and she trusted me completely. Trust and friendship are so important. That is why we need actual feminist groups, not just women-friendly services or institutions which may have everything on paper but may be as faceless as a government office." Friendliness was a quality that our survey-respondents were calling for as well -- by which they meant non-judgmental willingness to listen and respect for privacy. This probably calls for reflections of ways in which young women may be enabled to create their own groups beyond just study or notes-sharing groups, and perhaps training offered to young people in colleges must be planned in such a way that it culminates in the formation of self-empowerment groups for people of marginalized genders.

It also seems important to amplify feminist discourse online, in order to counter the narratives of victim-blaming, moral policing, harassment and abuse that makes up an average social media experience for an average user. Take, for example, the recent experience of a young articulate woman, Sreelakshmi Arackal, who was hounded out of Facebook for criticising a powerful political leader. She said her mother had started receiving threatening phone calls, and that she had called her, begging her to take the post down. Frightened, she had decided to deactivate for a while. Sreelakshmi in no stranger to cyber harassment - just a few weeks ago, her post on masturbation had gone viral, prompting negative comments even from prominent conservative film personalities.

When young women first access the internet, what can we do to make sure that patriarchy is not the roadmap they use to explore it? When young women stand up to speak to resist the state, or the religious right, or about their lived realities, they often say, like in Sreelakshmi's post, that they are doing this because they could not find anyone else talking about it. This silencing of feminist voices online leads to isolated pods of discourse in cyberspace, making it easier for our rights to speak openly and critically to be taken away from us.

Now even while we remain theoretically free to speak our minds and express ourselves on the internet, one thing that is certainly not free remains the *means* we use to access the internet, or even our computers. As an average user, you use a patented software to access a piece of hardware, to access social media sites owned and operated by international corporations that have the final say on what stays and what doesn't on their platforms. They surveil and monetise our data, without our clear and informed consent. What if we could teach young women to complete control of and over their computers, their digital safety and security, through Free/Libre and Open Source Software(FLOSS) tools? Workshops and courses like that organised at University/ College levels could demonstrate that we need not be passive consumers of tech and software - we can and must be our own agents, and make decisions for ourselves. A campaign like that, of

course, as much about gender politics as it is about coding skills – we could use technology as a jumping off point to address what empowerment means in the patriarchal communities and economies we live in, and create an environment where women are encouraged to be creative in identifying their own problems, as well as solutions.

Thirdly, this research calls for reflection into the ways in which the fear of 'leaks' may be eliminated. Given that 'leaking' is a feature of the internet itself, perhaps it is vital to shake off the obsession with safety as far as possible, and stand up to slut-shaming. Lawyers and activists were keen to stress that this fear is found in women with prominent activist profiles as much as it is in homebound women. One of them argued that fighting such cases formed a powerful kind of activism from which feminists should not back off from:

I have felt really frustrated at times – for example, there was a recent, really shocking instance of a young woman's revelation of how a leading social activist had sexually abused her when she was barely fifteen. She had evidence too – chats, texts, and other stuff. You cannot imagine how hard I tried to persuade her to file a case and fight. I would have done it for her, and she had a very good chance of justice. The Youth Commission had ordered the police to file a case on the basis of her FB post, luckily. But you know how that is, such cases are discussed only when the issue is in the limelight; then it drags. This young woman however did not want to proceed at all. There are equally powerful patriarchal pressures within the activist communities that stop women from going to court. Now, it is true that it is the social media that empowered her to speak up, but leaving it there just turned the whole thing into just a juicy titbit --or, more dangerously, just another bit of 'evidence' for conservatives that showed how 'sexually depraved' activists were – and that would include her too.

Fourthly, the need survivors have for care and counselling must be not underestimated by any means. In our interviews with survivors it was evident that the trauma they suffered was not just hidden but also long-lasting. All of them continued to stay in the public and online through the attacks and after, but with considerable psychological cost, for the act of recollection was painful for all. For this reason, one would think that justice to survivors of GBCV must perhaps include an adequate monetary compensation to cover the costs of treatment or therapy, and also to make up for gainful labour and earnings lost because of the trauma.

IV

We end this report with an insightful quote from a feminist lawyer who summed up the need to bring together women's collective action, friendliness and trust, and the determination to demand and obtain reform of the justice system dealing with GBCV, and to use it purposefully during crises. Her words sum up well what is perhaps the most political response to the intensely individualizing worlds in cyberspace that are also hostile to women:

Right now, the general atmosphere in most institutions that make up the justice mechanism is totally alienating for women. They make women feel afraid, guilty, and worthless. Women activists as well as women leading secret lives within patriarchal (and even reinforcing it) are made to feel equally guilty – i.e. if they faced cyber violence, then that is because they were in cyberspace! As I told you, women feel more empowered and assured when the lawyer is a friend – not just someone doling out legal aid or even doing some feminist professional service. If more of activism that offers friendship and trust is available, then women may come out. We have to see the fact that cyberspace is a place we all feel simultaneously alone and with others at the same time! To get over the feeling of being alone that appears more intense in online life – I think that is why women and their relatives feel so lacking in control when it comes to cyber violence – we need more trusting and friendly feminist connections.

In other words, while technical upgrading, better training, more staff and facilities, better monitoring, efficient evidence-collection and so on are vital for dealing with and preventing cybercrime, ultimately, the empowerment of victims with each protecting the other is the single most important element that will lay the foundation of gender equality and justice in cyberspace.

- ¹ Gopinathan, S. “How a Kerala Woman Fought for 2.5 Yrs to Prove Her Innocence in a Nude Video Case.” 28 Nov. 2018, www.thenewsminute.com/article/how-kerala-woman-fought-25-yrs-prove-her-innocence-nude-video-case-92330.
- ² Gopinathan, S., & Jayarajan, S. (2018, December 06). Kannur 16-yr-old gang raped, reveals she was also sexually abused by father for years. Retrieved from <https://www.thenewsminute.com/article/kannur-16-yr-old-gang-raped-reveals-she-was-also-sexually-abused-father-years-92884>
- ³ Gopakumar, K. (2018, December 14). Rehana Fathima gets bail. Retrieved from <https://www.thehindu.com/news/national/kerala/rehana-fathima-gets-bail/article25741116.ece>
- ⁴ Yahoo Stealing Food Blog Content , 9 Mar. 2007, foodblogscool.blogspot.com/2007/03/yahoo-stealing-food-blog-content.html.
- ⁵ Tejaswi, M. J. (2007, March 13). This story is from March 13, 2007 Yahoo says sorry for plagiarising cookery notes. Retrieved from <https://timesofindia.indiatimes.com/india/Yahoo-says-sorry-for-plagiarising-cookery-notes/articleshow/1755439.cms>
- ⁶ Yahoo Stealing Food Blog Content , 9 Mar. 2007, foodblogscool.blogspot.com/2007/03/yahoo-stealing-food-blog-content.html.
- ⁷ Lakshminarayan, B. (2016, May 03). If Facebook Ignores Online Harassment, It Promotes It. Retrieved from <https://feminisminindia.com/2016/05/03/facebook-ignores-harassment-promotes/>
- ⁸ Praveen, S. (2015, August 27). A push from Kerala, ‘For a better FB’. Retrieved from <https://www.thehindu.com/news/cities/Thiruvananthapuram/a-push-from-kerala-for-a-better-fb/article7585182.ece>
- ⁹ Smartphone penetration in India reaches 47%; Kerala tops the charts with 65% penetration: CyberMedia Research. (2018, June 23). Retrieved from <https://www.medianews4u.com/smartphone-penetration-india-reaches-47-kerala-tops-charts-65-penetration-cybermedia-research/>
- ¹⁰ G, T. (2015, December 21). Here’s why Kerala has become a new playground for 4G players. Retrieved from <https://telecomtalk.info/kerala-4g-market/147158/>
- ¹¹ Hariharan, R. (2018, April 03). Wedding Photos Allegedly Morphed For Pornographic Use By Kerala Studio. Retrieved from <https://www.ndtv.com/kerala-news/wedding-photos-allegedly-morphed-for-pornographic-use-circulated-on-social-media-by-kerala-studio-1832457>
- ¹² Thadani, M. (2018, July 28). Kerala Police Arrests Prime Suspect In Hanan Hamid Trolling Case. Retrieved from <https://www.shethepeople.tv/news/kerala-police-suspect-hanan-hamid-trolling-case>
- ¹³ Mohan, N. (2015, October 08). Kerala: Teacher lands in trouble over Facebook post against beef ban. Retrieved from <https://www.oneindia.com/india/deepa-nishanth-kerala-teacher-lands-in-trouble-over-facebook-post-against-beef-ban-1893169.html>
- ¹⁴ <http://www.malayalamdailynews.com/?p=185405>
- ¹⁵ Only 6 per Cent of Cops Are Women in Kerala . 23 Feb. 2017, www.deccanchronicle.com/nation/current-affairs/230217/only-6-per-cent-of-cops-are-women-in-kerala.html.
- ¹⁶ <https://english.manoramaonline.com/home.html>
- ¹⁷ https://www.mathrubhumi.com/crime-beat/crime-special/police-make-code-of-conduct-of-mobile-use-among-students-1.3373899?fbclid=IwAR2-DbKnBa5TK-5D0AFE-T_eNfyvGg0Yp-n7dFbrRrKSylFIQtWaz7pmQ
- ¹⁸ Ramdas, P. “Cybercriminals Way Ahead of Law Enforcement Officers: Kerala High Court.” www.newindianexpress.com/states/kerala/2018/nov/11/cybercriminals-way-ahead-of-law-enforcement-officers-kerala-high-court-1896588.html.